

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER

3. SOLICITATION NUMBER

4. TYPE OF SOLICITATION

- ☐
- SEALED BID (IFB) INVITATION FOR BID
-
- ☐
- NEGOTIATED (RFP) REQUEST FOR PROPOSAL

5. DATE ISSUED

6. REQUISITION/PURCHASE NUMBER

7. ISSUED BY

CODE

8. ADDRESS OFFER TO (If other than item 7)

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)			C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION	

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	
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	G	CONTRACT ADMINISTRATION DATA			M	EVALUATION FACTORS FOR AWARD	
	H	SPECIAL CONTRACT REQUIREMENTS					

OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE				

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()		23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)
24. ADMINISTERED BY (If other than Item 7)		25. PAYMENT WILL BE MADE BY CODE
26. NAME OF CONTRACTING OFFICER (Type or print)		27. UNITED STATES OF AMERICA (Signature of Contracting Officer)
		28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

MK41 Vertical Launching System (VLS) Launch Sequencer (LSEQ) Indefinite Delivery Indefinite Quantity (IDIQ) Multiple Award Contract (MAC)

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

CONTRACT MINIMUM/MAXIMUM QUANTITY AND CONTRACT VALUE

The minimum quantity and contract value for all orders issued against this contract shall not be less than the minimum quantity and contract value stated in the following table. The maximum quantity and contract value for all orders issued against this contract shall not exceed the maximum quantity and contract value stated in the following table.

MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
1.00		4,073	

CLIN DELIVERY/TASK ORDER MINIMUM/MAXIMUM QUANTITY AND CLIN ORDER VALUE

The minimum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not be less than the minimum quantity and order value stated in the following table. The maximum quantity and order value for the given Delivery/Task Order issued for this CLIN shall not exceed the maximum quantity and order value stated in the following table.

CLIN	MINIMUM QUANTITY	MINIMUM AMOUNT	MAXIMUM QUANTITY	MAXIMUM AMOUNT
0001	-	-	310	-
0002	-	-	45	-
0003	-	-	45	-
0004	-	-	10	-
0005	-	-	10	-
0006	-	-	100	-
0007	-	-	2200	-
0008	-	-	251	-
0009	-	-	100	-
0010	-	-	400	-
0011	-	-	240	-

0012	-	-	240	-
0013	-	-	20	-
0014	-	-	1	-
0015	-	-	100	-
0016	1	\$1,000	1	\$1,000

Note A:

Stepladder pricing is utilized in this solicitation to provide Offerors an opportunity to propose different pricing for separate quantity ranges within applicable Contract Line Items (CLINs). Price evaluation of step ladder CLINs will utilize a randomly selected quantity. Notwithstanding the option to propose different unit pricing for different quantities, the Offeror may propose the same unit price for all quantities.

For all CLINs with stepladder pricing, the Government may order units within CLINs with stepladder pricing until the total quantity purchased equals the maximum quantity listed for that CLIN in Section B. Proposed unit prices will be incorporated into the IDIQ MAC and shall represent maximum unit prices at the DO level.

Note B:

The following table provides the approximate timeframes that the CLINs and associated Sub-CLIN (SLINs), where applicable, may be awarded. This information is provided for planning purposes only and is subject to change depending on need and funding availability. The quantity of line items and units will be determined at DO level.

Description	Contract Year	Type	CLIN	Min QTY	Min Unit Price	Max QTY	Max Unit Price
MK 6 MOD 1 LSEQ	1	FFP	0001	1		32	
LSEQ Maintenance Assistance Module (MAM) Components	1	FFP	0002	1		4	
LSEQ Onboard Repair Part (ORBP)	1	FFP	0003	1		4	
LSEQ Installation and Checkout (INCO) Spares	1	FFP	0004	1		2	
LSEQ Depot Spares	1	FFP	0005	1		2	
Ethernet Switch Modules	1	FFP	0006	1		20	
Missile Electronics Box (MEB)	1	FFP	0007	1		400	
Hazard Electronics Box (HEB)	1	FFP	0008	1		44	
Tray, Power Module	1	FFP	0009	1		20	
Relay Module Assembly	1	FFP	0010	1		80	
Cable Assy, Single-Mode Fiber Optic (W2)	1	FFP	0011	1		40	
Cable Assy, Single Mode Fiber Optic (W3)	1	FFP	0012	1		40	

Materiel	1	FFP	0015	1		20	
Description	Contract Year	Type	CLIN	Min QTY	Min Unit Price	Max QTY	Max Unit Price
MK 6 MOD 1 LSEQ	2	FFP	0001	1		33	
LSEQ MAM Components	2	FFP	0002	1		4	
LSEQ OBRP	2	FFP	0003	1		4	
LSEQ INCO Spares	2	FFP	0004	1		1	
LSEQ Depot Spares	2	FFP	0005	1		1	
Ethernet Switch Modules	2	FFP	0006	1		20	
MEB	2	FFP	0007	1		400	
HEB	2	FFP	0008	1		44	
Tray, Power Module	2	FFP	0009	1		20	
Relay Module Assembly	2	FFP	0010	1		80	
Cable Assy, Single-Mode Fiber Optic (W2)	2	FFP	0011	1		40	
Cable Assy, Single Mode Fiber Optic (W3)	2	FFP	0012	1		40	
Materiel	2	FFP	0015	1		20	
Description	Contract Year	Type	CLIN	Min QTY	Min Unit Price	Max QTY	Max Unit Price
MK 6 MOD 1 LSEQ	3	FFP	0001	1		160	
LSEQ MAM Components	3	FFP	0002	1		24	
LSEQ OBRP	3	FFP	0003	1		24	
LSEQ INCO Spares	3	FFP	0004	1		4	
LSEQ Depot Spares	3	FFP	0005	1		4	
Ethernet Switch Modules	3	FFP	0006	1		20	

MEB	3	FFP	0007	1		600	
HEB	3	FFP	0008	1		75	
Tray, Power Module	3	FFP	0009	1		20	
Relay Module Assembly	3	FFP	0010	1		80	
Cable Assy, Single-Mode Fiber Optic (W2)	3	FFP	0011	1		80	
Cable Assy, Single Mode Fiber Optic (W3)	3	FFP	0012	1		80	
Materiel	3	FFP	0015	1		20	
Description	Contract Year	Type	CLIN	Min QTY	Min Unit Price	Max QTY	Max Unit Price
MK 6 MOD 1 LSEQ	4	FFP	0001	1		41	
LSEQ MAM Components	4	FFP	0002	1		6	
LSEQ OBRP	4	FFP	0003	1		6	
LSEQ INCO Spares	4	FFP	0004	1		2	
LSEQ Depot Spares	4	FFP	0005	1		2	
Ethernet Switch Modules	4	FFP	0006	1		20	
MEB	4	FFP	0007	1		400	
HEB	4	FFP	0008	1		44	
Tray, Power Module	4	FFP	0009	1		20	
Relay Module Assembly	4	FFP	0010	1		80	
Cable Assy, Single-Mode Fiber Optic (W2)	4	FFP	0011	1		40	
Cable Assy, Single Mode Fiber Optic (W3)	4	FFP	0012	1		40	
Materiel	4	FFP	0015	1		20	
Description	Contract Year	Type	CLIN	Min QTY	Min Unit Price	Max QTY	Max Unit Price

MK 6 MOD 1 LSEQ	5	FFP	0001	1		44	
LSEQ MAM Components	5	FFP	0002	1		7	
LSEQ OBRP	5	FFP	0003	1		7	
LSEQ INCO Spares	5	FFP	0004	1		1	
LSEQ Depot Spares	5	FFP	0005	1		1	
Ethernet Switch Modules	5	FFP	0006	1		20	
MEB	5	FFP	0007	1		400	
HEB	5	FFP	0008	1		44	
Tray, Power Module	5	FFP	0009	1		20	
Relay Module Assembly	5	FFP	0010	1		80	
Cable Assy, Single-Mode Fiber Optic (W2)	5	FFP	0011	1		40	
Cable Assy, Single Mode Fiber Optic (W3)	5	FFP	0012	1		40	
Materiel	5	FFP	0015	1		20	

Note C: The Contract maximum dollar ceiling value is \$349,988,248 based on the program's maximum Independent Government Estimate for all scope included on this contract. The actual executed contract value will be the sum of all competitive orders placed under this MAC IDIQ.

Note D: Upon award of the basic IDIQ contract, an initial DO will be issued to each IDIQ MAC holder to satisfy the minimum guarantee in accordance with FAR 16.505(b)(2)(D). The minimum guaranteed amount of \$1,000 is satisfied at award under this contract as a firm-fixed-price (FFP) DO for contractor representatives to attend the MAC IDIQ post award conference within 30 days of contract award. The Government is not obligated to order any quantity beyond the guaranteed minimum order.

Note E: The ordering period is five years from the effective date of MAC award. The Period of Performance for each Delivery Order (DO) issued against the Master Contract will be specified in the individual DO and may only be issued during the Master Contract ordering period.

Note F:

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	Manufacture, assemble, test and deliver MK 6 MOD 1 LSEQ in accordance with the Statement of Work (SOW) and Technical Data Package (TDP). Refer to Contract Data Requirements Lists (CDRLs) for item and data requirements. For Stepladder pricing, see attachment J-1 NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	310	Each		

0002	Manufacture, assemble, test and deliver LSEQ MAM Components in accordance with the SOW and TDP. Refer to CDRLs for item and data requirements. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	45	Set		
0003	Manufacture, assemble, test and deliver LSEQ OBRP Components in accordance with the SOW and TDP. Refer to CDRLs for item and data requirements. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	45	Set		
0004	Manufacture, assemble, test and deliver LSEQ INCO Spares Kits in accordance with the SOW and TDP. Refer to CDRLs for item and data requirements. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	10	Set		
0005	Manufacture, assemble, test and deliver LSEQ Depot Spares Kits in accordance with the SOW and TDP. Refer to CDRLs for item and data requirements. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	10	Set		
0006	Manufacture, assemble, test and deliver LSEQ Ethernet Switch Modules in accordance with the SOW and TDP. Refer to CDRLs for item and data requirements. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	100	Each		
0007	Production Phase: Fabricate, assemble, and deliver MEB and associated equipment IAW the SOW and TDP. Refer to CDRLs for item and data requirements For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item	2,200	Set		

	Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price				
0008	Production Phase: Fabricate, assemble, and deliver HEB and associated equipment IAW the SOW and TDP. Refer to CDRLs for item and data requirements. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	251	Set		
0009	Power Module Tray. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	100	Set		
0010	Relay Module Assembly. For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	400	Set		
0011	Cable Assy, Single-Mode Fiber Optic (W2). For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	240	Set		
0012	Cable Assy, Single-Mode Fiber Optic (W3). For Stepladder Pricing, see Attachment J-1. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	240	Set		
0013	Production Readiness Review NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	20	Lot		

0014	Physical Configuration Audit (PCA) Pricing Arrangement: Firm Fixed Price	1	Lot		
0015	Materiel NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	100	Lot		
0016	Post Award Conference Pricing Arrangement: Firm Fixed Price See Note D. Pricing Arrangement: Firm Fixed Price	1	Each		

Section C - Description/Specifications/Statement of Work

SOW

VLS LSEQ

N63394-26-R-0005

1.0 Introduction

1.1 Background

The Naval Surface Warfare Center, Port Hueneme Division (NSWC PHD) is seeking to procure the LSEQ MK 6 Mod 1 NAVSEA part number (p/n) P/N 8652144-19 and associated Lowest Replaceable Units (LRU) for MK 41 VLS. LSEQ plays a critical role in managing and controlling the sequence of events required to safely and successfully launch a missile.

LRU's will comprise of ethernet switch modules, MEB, HEB, power tray module, relay module assembly, single-mode fiber optic cable assembly (W2), and single-mode fiber optic cable assembly (W3)

1.2 Scope

The Contractor shall be responsible for the satisfactory and timely performance of all tasks defined in the SOW. This SOW, with its supporting attachments and referenced documentation, describes the requirement for the fabrication, assembly, test and delivery of VLS LSEQ.

1.3 Program Authority

NSWC PHD is the program authority for this contract.

2.0 Applicable Documents

The documents listed below, are part of this SOW to the extent described herein, including all relevant terms, conditions, clauses, attachments, and exhibits. In case of any conflict between the referenced documents and the contents of this SOW, the SOW will take precedence as the governing requirement. The contractor will apply the version of governing documents in effect at time of contract award. If there are post award changes to these documents the contracting officer will decide if the new versions will be implemented.

2.1 Government Documents

Document Number	Document Title
MIL-STD-109C	Quality Assurance (QA) Terms and Definitions
MIL-STD-1686C	Electrostatic Discharge Control Program for Protection of Electrical and Electronic Parts, I Assemblies and Equipment (Excluding Electrically Initiated Explosive Devices)
WS 20130	Production Environmental Test Requirements for VLS
TL130-AD-PLN-010-VLS	Configuration Management Program Plan for the MK 41 VLS, Volume 1, Equipment (Hardware) Configuration Management
MK 41 VLS Standing Instruction 94-1F, Attachment 6	Marking for technical data
TL130-AD-PLN-030-VLS,	Firmware Configuration Management
8652144-19	NAVSEA Drawing for LSEQ MK 6 Mod 1

2.2 Industry Documents

Document Number	Document Title
ANSI/ISO/ASQC Q9001	Quality Systems - Model for QA in Design, Development, Production, Installation and Servicing (Latest Version)
ANSI/EIA-649	National Consensus Standard for Configuration Management
ANSI/ASQC Q9004	Quality System Elements
ISO 9001	Quality Program Requirements
Service Acquisition Executive (SAE) AS5553	Counterfeit Electronic Parts: Avoidance, Detection, Mitigation, and Disposition
SAE AS6174	Counterfeit Material: Assuring Acquisition of Authentic and Conforming Material
SAE AS9102 Rev A	Aerospace First Article Inspection (FAI)
ISO 14000	Environmental Management Systems Standards
IPC-J-STD-001	Requirements for Soldered Electrical and Electronic Assemblies
IPC-A-610	Acceptability of Electronic Assemblies
IPC-6012	Qualification and Performance Specification for Rigid Printed Boards

2.3 CLIN Structure

- 0001: MK 6 Mod 1 LSEQ
- 0002: LSEQ MAM Components
- 0003: LSEQ OBRP
- 0004: LSEQ INCO Spares
- 0005: LSEQ Depot Spares
- 0006: Ethernet Switches
- 0007: MEB
- 0008: HEB
- 0009: Power Tray Module
- 0010: Relay Module Assembly
- 0011: Single-mode fiber optic cable assembly (W2)
- 0012: Single-mode fiber optic cable assembly (W3)
- 0013: Production Readiness Review
- 0014: Physical Configuration Audit
- 0015: Materiel
- 0016: Conference Award Conference

3.0 Technical Requirements

3.1 General Requirements

The Government requires manufacturing of VLS LSEQ and associated LRUs in accordance with the documents specified above.

The Contractor shall fabricate, assemble, test, and deliver VLS LSEQ and LRUs in accordance with technical drawings, and specifications identified in Section C and in accordance with the contents of this SOW. All VLS LSEQ and LRUs shall meet all requirements including form, fit, and function requirements in accordance with the TDP and associated specifications.

3.2 Configuration Management

The Contractor shall maintain a configuration management program, which shall provide for the administrative and functional systems necessary for configuration identification, control, status accounting and reporting, to ensure configuration identity with the LSEQ produced by the Contractor. The Contractor shall maintain a Contractor approved Configuration Management Plan that complies with ANSI/EIA-649 2011.

Notwithstanding ANSI/EIA-649 2011, the Contractor's configuration management program shall comply with the VLS Configuration Management Plans, TL130-AD-PLN-010-VLS, and shall comply with the other standards cite in section and subsections of 3.10.

3.2.1 Configuration Identification

The Contractor shall maintain identification of the product baselines throughout fabrication, testing, and delivery. The Contractor shall ensure that equipment is assigned identifying numbers, designators, and serial numbers in accordance with the TDP.

Serialized items shall be traceable to source of manufacture and production contract year. This information may be incorporated as a formal part of the Contractor's serialization system or otherwise be annotated on the affected item.

The request for serial number assignment shall contain the following minimum information:

- (a) Officially assigned item name
- (b) Officially assigned type designation
- (c) Officially assigned model number
- (d) Top drawing number and list of drawings or part list
- (e) Exact quantity to be delivered under the contract including pre-production samples and spares required by the contract.
- (f) Contract number
- (g) National Stock Number
- (h) NAVSEA cognizant office code

The Contractor shall submit a configuration definition data package describing the detailed configuration of each end item as delivered to the designated destination in accordance with CDRL A004. The Contractor shall maintain a system to monitor engineering release and correlation of manufactured products.

3.2.2 Configuration Control (incl. Minor Deviations, ECPs)

Minor Deviations:

1. The contractor shall submit the deviation to NSWC Dahlgren Division (DD) for review & approval.
2. If NSWC DD concurs in classification, the deviation will be boarded at NSWC DD CCB for approval or disapproval.
3. If NSWC DD does not concur in classification, the Contractor shall cancel the minor deviation.

The Contractor shall submit for review and approval all specification changes to NSWC DD for review and approval.

3.2.3 Configuration Status Accounting

The Contractor's configuration status accounting shall be in accordance with ANSI/EIA-649, the Configuration Management Plan for the VLS, Volume 1, Equipment (Hardware) Configuration Management, TL130-AD-PLN- 010-VLS, and the Configuration Management Plan for the VLS, Volume 3, Firmware Configuration Management, and TL130-AD-PLN-030-VLS.

The Contractor shall provide documentation of the exact delivered configuration of each unit. The Contractor, or Subcontractor at the appropriate tier, shall identify the "as-built" production configuration of each NAVSEA nomenclature item by means of permanent markings on the appropriate ORDALT/ Ship Change Installation Procedure (SCIP) label plate on the equipment to identify the specific ORDALTs/SCIPs installed in the

equipment being delivered. For Class I ECPs, which are not assigned to an ORDALT number, the ORDALT label plate shall be marked with the applicable Class I ECP number as assigned by the Government. For purposes of this requirement, markings may be etched, steel stamped or affixed by other suitable means which results in the permanent identification of the equipment configuration. Ink stamping is not permitted.

3.2.4 Qualification of Substitute Sources

The TDP contains source control or vendor item drawings that specify approved, or suggested sources of supply. The Contractor may qualify other sources for these items. Qualification of new sources selected by the Contractor shall be at the Contractor's expense.

The Contractor shall submit all proposed changes to approved, or suggested sources of supply as indicated in the source control or vendor item drawings in accordance with SOW. The package of information that is submitted for Government review shall contain all applicable drawings, test plans, procedures and qualification reports. An extended Government review period of 20 business days applies to all proposed changes to approved or suggested sources of supply.

3.2.5 Military Specs and Standards

The LSEQ TDPs, reference and cite cancelled military standards and specifications. Apply them as directed notwithstanding their cancelled status. The Government has no plan to replace any such standard or specification with a commercial version. The military standard or specification of the latest version in effect at time of cancellation shall be considered applicable to this procurement.

3.3 Testing and Inspection

3.3.1 Automated Test Equipment (ATE) and Government-Furnished Property (GFP)

The Government will provide ATE, associated interface cables, software, and operator manual as GFP to perform the acceptance tests that are required by TDP.

TEST EQUIPMENT NOMENCLATURE	PART NUMBER
LSEQ ATE	7572472-9
Power Tray ATE	8660200-9
CAVE 2	8666188
Relay Module Tester (Functional testing)	TSE-P06-01-007
Relay Module Tester (PET testing)	TSE-P06-01-008

The ATEs have been certified for use by the Government. An on-site demonstration is required prior to the Contractor use of the ATE. The demonstration shall be completed 30 days prior to first use for acceptance testing. The Contractor shall provide test operators and the necessary engineering support to the Government Certifying Agent in preparation for and during the on-site demonstration. The Contractor shall provide post-demonstration support and take all necessary actions to resolve all discrepancies that are the Contractor's responsibility.

The Contractor shall be responsible for properly maintaining, calibrating, and ensuring the overall care of the required test capability, including ATE, associated interface cables, test tools, and calibration tools. The Government shall not be liable for any production delays or impacts resulting from ATE performance issues after it has been certified for on-site use.

Changes to certified ATE shall be submitted to the Government for approval and certification.

3.3.2 Testing, Inspecting and Acceptance

Testing and inspection of all VLS LSEQ and associated LRU units and associated cables shall be performed at the Contractor's facility in accordance with the applicable drawings, standards and specifications and factory test and inspection plans. The Contractor shall ensure that all such testing and inspections required for acceptance are satisfactorily performed.

The Contractor shall prepare specific written inspection and test procedures for each inspection and test operation to be performed by the Contractor. These inspection and test procedures shall be reviewed by the QA organization and maintained current in accordance with the change control system requirements. The inspection and test procedures shall clearly identify the item through part number with revision and nomenclature, and include detail instructions and/or operations to be performed.

The Contractor shall maintain records of inspection results and quantitative test data for each deliverable end item and make them available to the Government upon request.

3.3.3 FAI

The Contractor shall perform FAI of all assemblies, subassemblies, components and detail parts including castings and forgings in accordance with SAE Aerospace Standard AS9102 Rev A. The purpose of FAI is to provide objective evidence that all TDP and specification requirements are correctly understood, accounted for, verified, and recorded. An FAI is not required for standard catalog items, commercial-off-the-shelf items, raw materials or items procured in accordance with source control drawings.

The Contractor shall submit all FAI requirement waivers to the Government for approval. The waiver shall identify, at a minimum, the part description, part number, manufacturer, date last built, location last built, FAI report summary (if applicable), FAI discrepancies and corrective actions (if applicable), and waiver justification.

The Government reserves the right to witness all FAI activities. The Contractor shall submit a comprehensive schedule of FAI events that includes date, time, expected duration and location to the Government at least 20 working days prior to the first event, in accordance with CDRL A001.

The Contractor shall generate and submit via digital means to the Government FAI reports in accordance with AS9102 and CDRL A002. The Contractor shall retain the FAI reports for at least seven years. The Government reserves the right to examine all FAI reports.

All deficiencies identified during the FAIs, as defined by the Government, shall be corrected at the Contractor's expense before the unit is delivered to the Government. Deficiencies are not limited to those affecting form, fit, or function but include any issues that do not meet contractual requirements, quality standards, or performance expectations.

3.3.4 PCA

The purpose of the PCA is to verify the as-built configuration matches its technical documentation. The PCAs shall be conducted in accordance with Section 7 of TL130-AD-PLN-010-VLS, Configuration Management Program Plan for the MK 41 VLS.

During the performance of the contract, the Government has the right to perform a PCA. The PCA may include an evaluation of the effectiveness of the Contractor, Subcontractor and/or supplier audit programs to promote prevention of defects. This includes scheduling of audit, evaluation of operations, and notification of required corrective action with follow-up and means of notification to top management concerning audit results.

One PCA shall be conducted over the course of the contract on the LSEQ. The LSEQ shall be selected by the Government and the Contractor from the production run.

The Contractor shall provide qualified engineering, technical, manufacturing, administrative, management and other support as necessary for the PCA. The Contractor shall provide all tools, measuring devices and other equipment required for equipment disassembly, dimensional and tolerance verification and performance verification. The Contractor shall provide an area to conduct PCA that is well illuminated, temperate and low noise level. The PCA work area shall contain worktables, print copies of all pertinent drawings, telephone and easy access to a copy machine.

During the PCA, the Contractor shall provide, at a minimum, individual parts that make up the configuration item, completed assemblies, an as-built list delineating all ECP (either requested or approved), deviations and waivers, hardcopies of production specifications and technical drawings, complete shortage list, manufacturing instructions, acceptance test procedures and data, purchase order documents and associated certificates of conformance from suppliers or appropriate documents indicating compliance with material or drawing requirements in accordance with CDRL A003.

The PCA will be conducted at the Contractor's, Subcontractors' and suppliers' facilities by the Government team. The Government will notify the Contractor seven (7) to 14 business days prior to performance of the PCA. This notice will include identification of assemblies, subassemblies and/or piece parts to be audited. The PCA will be approximately one to two weeks in duration.

Following conduct of the PCA, the Contractor shall generate the necessary documentation to resolve all audit findings and provide these to the Government audit team within the timeframe specified by the Government in accordance with CDRL A004. The Government audit team will evaluate the documentation to assess corrective action(s) taken to close any and all audit finding(s). Necessary documentation may include, but not be limited to, revised manufacturing processes, ECPs, notice of revisions, SCN and revised TDP drawings.

Government and Contractor pre-and post-PCA activities are described in Sections 7.4 through 7.7 of the VLS Configuration Management Plan TL130-AD-PLN-010-VLS.

All deficiencies discovered during the PCA that affect form, fit, function or performance shall be corrected at Contractor's expense prior to the unit delivery to the Government.

3.3.5 Production Environmental Tests

Production environmental testing as specified by the TDP or Production Environmental Test Requirements for VLS Specification WS 20130 shall be performed.

3.3.6 Government Inspection of Facilities

The Government may visit/inspect the plant or plants of the Contractor, or of any Subcontractors, engaged in the performance of this contract. If any examination/test is made by the Government on the premises of the Contractor/Subcontractor, the Contractor and any subcontractors shall provide all reasonable facilities and assistance for the safety and convenience of the Government inspectors in the performance of their duties. All examinations and tests by the Government will be performed in such a manner as will not unduly delay work.

3.3.7 Government Inspection and Acceptance

The Contractor shall provide technical, administrative, and management support for Government source inspection for purposes of inspection and acceptance of supplies and services provided by the Contractor, Subcontractor and suppliers. Government source inspection will be conducted at the convenience of the Government.

3.4 Manufacturing and Process Control

The Contractor shall update their Manufacturing Plan to include VLS LSEQ being produced by the Contractor under this contract. The Contractor shall develop manufacturing and test procedures. The Contractor shall identify key production processes and shall establish process capability and process control requirements for each. The Contractor shall submit Progress, Status, and Management reports to cover progress, schedule performance, technical and quality problems and other issues as may be appropriate to facilitate program management by the Government in accordance with CDRL A005.

3.4.1 Manufacturing Processes

The Contractor shall maintain and control manufacturing processes to fabricate, assemble, inspect, test, and deliver VLS LSEQ and associated LRUs as described in the SOW. The processes shall cover all phases from the ordering of raw materials to Government acceptance of the finished product. All hardware components shall be manufactured in accordance with the drawings and specifications referenced in the TDP and this SOW.

Documentation and records of the manufacturing processes and products, such as test reports, material certification, QA records, etc. shall be maintained and provided to the Government upon request.

3.4.2 Electrostatic Discharge Protection

The Contractor shall develop and maintain an electrostatic discharge protection/control program that complies with MIL-STD-1686C.

3.4.3 Special Tooling and Equipment

The Contractor shall design, fabricate or procure all special tooling, test equipment and gauges required to manufacture, assemble, test and inspect VLS LSEQ.

3.4.4 Contractor Storage of Equipment

Prior to and following the DD Form 250 acceptance and/or Program Quality Acceptance (PQA) signature, the Contractor shall provide material, services and facilities to store, preserve and protect any equipment completed during the manufacturing process until the specified contract delivery date.

3.4.5 Part Re-Screening

The Contractor is not required to implement the TDP requirements to conduct re-screening of electrical components. Remarking of parts to the re-screened part number will not be required and the existing base part number shall remain intact. Programmable parts shall require re-identification.

3.4.6 Limited Shelf Life Components

The Contractor's quality management system shall ensure procured supplies that are subject to age deterioration, including epoxies and similar adhesives, are managed and controlled. Controls shall include prominent labeling and proactive measures to ensure expired material is not used in the manufacturing process. Controls shall allow complete traceability of limited shelf life components used in launcher products.

3.5 QA and Control

3.5.1 Quality Control Program Plan

The Contractor shall submit a Quality Control Program Plan in accordance with CDRL A007. This document shall address all aspects of manufacturing, testing, and inspection as specified in the TDP, SOW, and contract. The Quality Control Program Plan should also address other aspects where quality control interface is appropriate, such as the quality group's input into purchasing decisions, and incoming receiving and inspection of material and components. The Contractor's Quality Control Program Plan must be approved by the Government before fabrication or procurement of any product for eventual delivery. Acceptance of the Contractor's quality control program shall not in any way relieve the Contractor of their responsibility for compliance with all contract requirements. All manufacturing, assembly, inspection, and testing shall adhere to the requirements of the QA plan. If any changes are made to the Quality Control Program Plan during the course of this contract, the Contractor shall notify the Government in writing of these changes.

3.5.2 Quality System and Control Processes

The Contractor shall maintain a quality system, associated certifications or compliances, and test/inspection results. The Contractor shall maintain quality and process controls that shall be used to ensure that the manufactured products shall be in compliance with the applicable drawings, specifications, and this SOW. The Contractor shall maintain documentation and processes that shall be used to identify, record, and disposition non-conforming material, in-process rejects/reworks and characteristic discrepancies. This documentation shall be kept by the Contractor until further notification by the Government.

The quality management system procedures, planning, and all other documentation or data that comprise the quality management system shall be submitted to the Government for review in accordance with CDRL A007. Existing quality documents that meet the requirements of this contract may

continue to be used. The Government may perform any necessary inspections, verifications, and evaluations to ascertain conformance to requirements and the adequacy of the implementing procedures. The Contractor's quality management system shall conform to supplement quality requirements imposed by this contract. The Government reserves the right to disapprove the quality management system or portions thereof when it fails to meet the contractual requirements.

3.5.3 QA (ISO/ASQ Standards)

The Contractor's QA program shall conform to the Contractor's QA Program Plan and shall be in conformity with either ANSI/ASQC Q9001, or ISO 9001 for production; by using ANSI/ASQC Q9001 as a guide. This applies to items manufactured or performed by the Contractor at the Contractor's plant or all outsourced facilities. The Contractor shall flow down to the Subcontractors and vendors the quality requirements through subcontracts, purchase orders, or other contractual purchasing documentation by using ANSI/ASQC Q9001 as a guide. The quality requirements include ANSI /ASQC Q9001 or ISO 9001, and relevant SOW and TDP requirements. The Subcontractors and vendors shall provide Certificates of Conformance that the flowed down requirements are fulfilled.

The Contractor shall provide for appropriate QA review of manufacturing process.

The Contractor's QA Program Plan shall be reviewed by the Government and must be accepted before fabrication or procurement of any product for eventual delivery. Acceptance of the Contractor's quality control program shall not in any way relieve the Contractor of their responsibility for compliance with all contract requirements. If any non-editorial changes are made to the QA Program Plan during this contract, the Contractor shall notify the Government in writing of these changes. The Government reserves the right to disapprove the QA Program Plan when it fails to meet the contractual requirements. The Contractor shall provide QA Program Status describing the Contractor's activity as part of Status Report (Quality Assurance Program) in accordance with CDRL A007.

3.5.4 Manufacturing Certification and Traceability

The Contractor shall submit a Certificate of Conformance certifying that the VLS LSEQ delivered meets the requirements of this contract.

The Contractor shall retain and provide upon request inspection and test results associated with certifying the units in accordance with CDRL A005.

3.6 Counterfeit Material Prevention

The following minimum processes shall be implemented and flowed down by the Contractor to all Subcontractors in order to minimize the risk of use of counterfeit parts in VLS components.

The Contractor shall establish processes to minimize the risk of procuring and using counterfeit parts and materials. The Contractor shall document these processes and provide those documented processes to Government upon request. These processes shall include:

- At a minimum, these processes shall ensure that all components for LSEQ and subassemblies are purchased from Original Equipment Manufacturer (OEM), Original Component Manufacturer (OCM) authorized suppliers or franchised distributors. The term OEM, OCM, authorized supplier and franchised distributor are each defined in SAE AS5553).
- At a minimum, the contractor shall ensure procurement practices and processes to purchase and install components from OEM, OCM, authorized suppliers and franchised distributors are flowed down to subcontractors and suppliers at all tiers.
- The Counterfeit Prevention Plan shall be generated in accordance with Data Item Description (DID) DI-MISC-81832, Counterfeit Prevention Plan, requirements.
- The Counterfeit Prevention Plan, SAE AS5553 and SAE AS6174 requirements shall be flowed down to all subcontractors and suppliers.
- The Contractor shall maximize the use of authentic, originally designed and/or qualified parts.
- The Contractor shall assess potential sources of supply to minimize the risk of receiving counterfeit parts or materials.
- The Contractor shall have purchasing procedures which confirm whether a selected supplier is authorized, as defined in SAE AS5553 and SAE AS6174, for each purchase.
- The Contractor shall define minimum inspection and test requirements for parts being procured and shall ensure that in-house, third-party, and/or supplier inspection and test procedures and facilities comply with these requirements. These minimum inspection and test requirements shall specify appropriate test methods to detect potential counterfeit parts and materials.
- The Contractor shall require a certificate of compliance and supply chain traceability for all electronic part purchases.
- The Contractor shall require a Certificate of Conformance, as defined in SAE AS5553 and SAE AS6174, and supply chain traceability for all electronic part purchases.

- The Contractor shall use government or industry services such as the Government-Industry Data Exchange Program (GIDEP) and other commercially available services to identify part or supplier quality or authenticity problems.

The Contractor shall notify the Government of the occurrence of a confirmed counterfeit part or material and the actions taken to identify, contain, and impound all product from the lot, within seven (7) business days of confirmation of the counterfeit status. The Contractor shall flow down a requirement for similar notification from Subcontractors to the Contractor. The Contractor shall initiate and submit an alert to the GIDEP within 30 calendar days of knowledge of the counterfeit part or material.

Counterfeit parts and material are defined by SAE AS5553 and SAE AS6174 may be electronic or mechanical in nature. Counterfeit electronic parts may typically be used parts which have been refurbished and represented as new. Commonly counterfeited electronic parts include parts such as microcontrollers or specially screened devices, or common parts, which have several pin-compatible versions from multiple manufacturers, such as memory devices and operational amplifiers. Counterfeit mechanical parts are typically improperly made, marked, or treated products. Examples are improper anodization or heat treatments, falsified data, mismarked parts sold as a higher grade steel or used/fake parts such as valves or circuit breakers.

An authorized supplier is a supplier authorized by the original component manufacturer to buy parts or materials directly from the manufacturer. Parts provided from authorized suppliers typically have never left the manufacturer's authorized supply chain and are accompanied by full manufacturer support and warranty.

3.6.1 Subcontractor and Vendor Management

The Contractor shall identify and monitor Subcontractor and vendor technical, quality, schedule, and milestone achievement on a continuing basis, according to the Contractor's established subcontract and vendor management techniques. Notwithstanding the above, at a minimum the Contractor's subcontract and vendor management system shall comply with ANSI/ISO/ASQC Q9001 provisions for purchasing and supplier management. The Contractor shall:

- Establish, document, and maintain a purchasing system and develop a self-assessment program to ensure adequate controls;
- Acquire quality products at fair and reasonable prices, using best in class commercial purchasing practices and procedures and ensure fair and open competition;
- Only purchase components (consistent with section 13.3 of this SOW) from OEM, OCM, authorized suppliers or franchised distributors. (The terms OEM, OCM, authorized suppliers, and franchised distributors are each defined in SAE AS5553)
- Ensure, at a minimum, that procurement practices and processes to purchase and install components from OEM, OCM, authorized suppliers or franchised distributors are flowed down to subcontractors and suppliers at all tiers;
- Audit subcontracts as needed;
- Conduct review and periodic appraisal of the subcontractor's and vendor purchasing system and its self-assessment reports. The periodicity shall be at least annually. The Government shall have the right to examine and/or participate the reviews and appraisals' information; and
- Notify the Government prior to changes in Subcontractor status.

3.7 Risk and Defect Management

3.7.1 Risk Assessment and Mitigation

The Contractor shall perform risk assessment and management. The Contractor shall use its own established Risk Management Program; however, the Risk Management Program shall at a minimum contain the following:

Risk management shall be a continuous process, analyzing program risks and individual mitigation plans on a sufficiently frequent basis to be proactive in preventing major Program problems. Major problems include, but are not limited to, not meeting delivery dates and nonconformance to specifications and drawings. The analysis shall identify the risks associated with each area, assess the probability of occurrence, identify the impact of each risk on the overall program, and develop and implement risk mitigation plans for identified risks. The risk analysis shall use metrics from the Contractor's Risk Management Program. Risk analysis status and metrics shall be reported in the Contractor's Progress, Status and Management Report in accordance with CDRL A005 and presented during Program and Technical Reviews.

3.7.2 Failure/Defect Reporting and Corrective Action System (FACAR)

The Contractor shall have a FACAR system established and maintained for both manufacturing and test processes. Level of assembly for failure reporting shall be consistent with the requirement for recording defect history. FACAR system information required to be recorded or reported by this SOW paragraph shall be submitted in accordance with CDRL A005.

The Contractor shall implement an effective system for evaluation and disposition of supplies and services that exhibit nonconformance, including those furnished by suppliers (Subcontractors and vendors). The Contractor shall ensure that the personnel staffing the FACAR system have the authority to coordinate and implement the necessary failure and problem reporting, analysis, and related corrective action. The Contractor shall ensure that nonconformance data is adequately analyzed, distributed to appropriate organizations and personnel, and that appropriate management decisions are based on this data. Analysis must target root cause corrective action. The Contractor shall take appropriate actions to improve or change processes that do not meet requirements. All use-as-is and repair dispositions shall include a determination of whether or not a change is required to the product database (drawing, specifications, work instructions, tooling, etc.). Determination that such a change is not required shall be recorded and shall be available to the Government for review. Acceptance of the nonconformance corrective action and disposition is the prerogative of the Government and can be revoked whenever the Contractor's system fails to demonstrate effective root cause corrective action or when repeated nonconformance indicate an overall quality system degradation.

3.7.3 Defect Reduction Program

The Contractor shall establish a statistically-based process control and defect reduction program to control and improve product quality. The Contractor shall present the progress of the process control and defect reduction program at the program reviews and/or periodic production reviews of SOW paragraph 3.14.3.

4.0 Program Management

4.1 Program Management

The Contractor shall follow its internal Program Management Plan in the production of VLS LSEQ shall submit Progress, Status and Management Reports in accordance with CDRL A005.

4.1.1 Government Rights to TDP Changes

The Government will maintain the Government-owned TDP. The Contractor shall submit proposed changes to the TDP to the Government. The Government will retain unlimited rights to all technical data, versions of and changes to all drawings, specifications and other documents for the VLS components produced under this contract.

4.1.2 Marking for Technical Data

The Contractor shall mark all technical data in accordance with MK 41 VLS Standing Instruction 94-1F, Attachment 6. This instruction is applicable to new documents, revised documents or documents from file in response to a request for copy.

4.1.3 Right of Access

The Government will have right of access to all facilities in which storage of raw materials, purchased parts, either finished or unfinished, and finished equipment may be established. Right of access shall include all areas in which VLS LSEQ are stored, manufactured, processed, aligned, assembled, and tested. Right of Access shall include access to records and documentation concerning the VLS LSEQ. Access includes specifications, purchase orders and subcontract documentation, receiving, inspection and test records for such purchase parts. Right of access shall include access at all tiers to vendors, Subcontractors and suppliers in accordance with FAR 46.405 and FAR clauses 52.245-1(g) and FAR 52.246-1.

The Government may perform any necessary inspections, verifications and evaluations to ascertain conformance to requirements, and the adequacy of the implementing procedures.

4.2 Reviews and Reporting

4.2.1 Program/Quarterly Production Reviews (QPR)

The Contractor shall hold QPR commencing three (3) months after contract award, and every three months thereafter. The program reviews shall cover progress, schedules and problems. These reviews will be used to assess the Contractor's progress, risk in meeting contractual requirements and status. During these reviews, the Contractor shall provide, at a minimum, overall comprehensive status of:

- Production, procurement and material issues;
- Subcontractor and Vendor procurement
- Integrated Master Schedule including the Critical Path
- Make-or-Buy Program/Changes
- Risk Analysis Activities
- Quality Program Status
- Defect Reduction Program Status
- Safety Program Status
- Configuration Management Activities
- Government Furnished Equipment (GFP)/Property Status and Issues
- Procurement Status

- Purchase Order history
- Expected delivery schedule
- Manufacturing Planning;
- Manufacturing Schedules;
- Production Processing & Fabrication;
- Calibration, Tool and Test Equipment;
- Non-Conforming Material Control;
- Completed Item Inspection and Test;
- Handling, Storage and Delivery
- Equipment and Data Item Delivery Schedule
- Final System Test(s)
- Cost Saving Initiatives
- Other Issues Identified by the Technical POC

The Contractor shall provide production plan to include all pertinent information as detailed above. The Contractor shall demonstrate the ability to manufacture and test the LSEQ and associated LRUs by providing various documents to include, but not be limited to, Manufacturing, Testing, QA, Configuration Management, Calibration, and Supplier Management Plans. Policies, procedures, processes & plans demonstrating production processing & fabrication capability, facilities & equipment capacity, production scheduling, manpower resources & training, supplier management, parts & material procurement and shop loading will also be required. On-Site examination of the plans/documents described above, as well as examination of the manufacturing equipment and facility, review of support functions/groups, and interviews with project personnel, are all integral parts of the PRR. Processes must be able to produce repeatable conforming hardware within time constraints of the contract. During the PRR, the Contractor shall be prepared to discuss manufacturing & procurement planning status, issues, problems, risks and schedules associated with the production program, and provide requested supporting objective evidence.

A successful review is predicated on the Government's determination that there are no unacceptable risks, performance & quality requirements are fully met in the production configuration, and production capability demonstrates a satisfactory basis for proceeding into production. The Government in its sole discretion will determine whether the PRRs are successful.

The Integrated Master Schedule (IMS) shall be completed to Tier 1 in accordance with CDRL A006. In the case of any conflict between this SOW and CDRL A006, this SOW takes precedence. Tier 1 is defined as a major subcontractor.

For planning purposes, the program review location will be at the Contractor's facility.

The Contractor shall also conduct management meetings regarding delivery on a regular basis (to be mutually agreed upon between the Government and Contractor) between the program reviews. The meetings will be conducted via teleconference or at the Contractor's facility.

- Meetings may be held bi-weekly via teleconference
- Meeting materials shall be made available 24 hours prior to meeting start and distributed via email
- Bi-weekly review shall include updated schedules for LSEQ and associated cables production status with actual start and completion dates for each major step and updated projections with detailed explanation if schedule slips
- Bi-weekly review shall include any special topics as mutually agreed upon between the Government and Contractor

The Contractor shall provide presentation material in accordance with CDRL A006. The Government has the right to hold additional informal reviews at mutually convenient times to follow progress and problems, which may exist.

4.2.2 Make or Buy Program and Changes

New or alternate sources for production shall be required to qualify to meet the requirements of this contract and the TDP.

The Contractor shall notify the Government of Make-or Buy program changes in accordance with FAR 52.215-9, Changes or Additions to Make-or-Buy Program. The Government shall have the right to request, and receive from the Contractor, the detailed Make-or-Buy documentation during contract performance.

5.0 Diminishing Manufacturing Sources and Material Shortages (DMSMS)

The contractor shall provide engineering services to identify, assess, and resolve obsolescence issues affecting system components, subassemblies, and software. This includes evaluating alternative parts or materials, reverse engineering legacy components, updating technical documentation, and supporting form, fit, and function replacements. The contractor shall also coordinate with vendors and government stakeholders to develop mitigation strategies, conduct impact assessments, and provide recommendations for sustaining system performance and reliability in the face of DMSMS.

6.0 Environmental Compliance and Regulations

6.1.1 Environmental Law (ISO 14000, Navy policy)

The Contractor shall comply, and ensure that all Subcontractors comply, with all applicable environmental federal, state, and local laws and regulations and Navy policies, instructions and ISO 14000 Environmental Management Systems Standards.

6.1.2 Hazardous Waste Handling

The Contractor shall comply and ensure that all subcontractors comply with all applicable environmental federal, state, local and Navy instructions for handling and control of hazardous waste.

6.1.3 Ozone Depleting Substances

The TDP requirements notwithstanding, the Contractor shall not use 1,1,1-Trichloroethane or CFC-113 for cleaning or surface preparation. A substitute material that is not a Class I Ozone Depleting Substance shall be used to provide an equal or better level of cleanliness or surface preparation as provided by 1,1,1 Trichloroethane or CFC-113. The Contractor shall not use 1,1,1-Trichloroethane or CFC-113 as a solvent resistance test fluid. The Contractor shall notify the Government by written correspondence of its intent to perform material qualification tests which, by material specification, include 1,1,1-Trichloroethane or CFC-113 solvent resistance testing. The Contractor shall identify any detrimental impacts on the material qualification caused by not performing the 1,1,1-Trichloroethane or CFC-113 solvent resistance testing.

6.1.4 Safety

The Contractor shall comply with the latest applicable federal and state laws, regulations and management plans and requirements regarding occupational safety and health.

7.0 Operational Security (OPSEC) Plan

Contractor will be developing, producing, analyzing, maintaining, transporting, storing, testing, or using critical information or indicators for this contract.

The contractor is required to institute OPSEC measures to protect the critical information and indicators of this program. The contractor shall comply with the Government Contracting Activity (GCA) or facilities OPSEC program instructions, guidance and contribute to organization-level OPSEC training and awareness programs while performing executions of this contract. Ensure you read and comply with NSWC PHDINST 3432.1C, updating NSWC PHDINST 3070.2 series for OPSEC requirements.

The contractor shall include OPSEC as part of its ongoing training and awareness program and complete all required activity OPSEC training. The contractor shall protect identified critical information, sensitive unclassified information and activities, which if divulged, could further compromise classified or sensitive information or operations, or degrade the planning and execution of operations performed in support of the mission.

8.0 Deliverables**8.1 Technical Instructions/Deliverables**

For any data generated under this contract, the contractor shall provide the Government unlimited rights or Government purpose rights. Anything less than that should be identified, disclosed in the appropriate TDP package and marked in each item. The Government reserves the right to use, reproduce and distribute such data, as it deems necessary.

The contractor shall be responsible for ensuring compliance with all copyright and trademark laws and appropriate marking of copyrighted and trademarked data, including obtaining permission for use and reproduction by the Government.

CDRL	Title	PARAGRAPH
A001	KEY EVENT SCHEDULE	3.2
A002	INSPECTION REPORT	3.2
A003	CONFIGURATION STATUS ACCOUNTING INFORMATION	3.4
A004	AS BUILT CONFIGURATION LIST-COMMON (ABCL-C)	3.4 and 3.10.1
A005	TECHNICAL REPORT STUDY/SERVICES	3.10.5, 3.14.3, 3.15, 3.16, 3.21.2
A006	CONTRACTOR'S PROGRESS, STATUS AND MANAGEMENT	3.14.1

A007	QUALITY CONTROL PROGRAM PLAN	3.21.1, 3.21.3, 3.21.4
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ACRONYMS

The following acronyms appear in this Solicitation. This is not an exhaustive list.

ACRONYM	DEFINITION
AOI	Automated Optical Inspection
ATE	Automatic Test Equipment
BGA	Ball Grid Array
CCA	Circuit Card Assembly
CCB	Configuration Change Board
CDRL	Contract Discrepancy Report
DMSMS	Diminishing Manufacturing Sources and Material Shortages
DD	Dahlgren
ECP	Engineering Change Proposal
FACAR	Failure/Defect Reporting and Corrective Action System
FAI	First Article Inspection
GIDEP	Government-Industry Data Exchange Program
GFP	Government Furnished Property
HEB	Hazard Electronics Box
ICT	In-Circuit Test
LRU	Lowest Replaceable Unit
LSEQ	Launch Sequencer
MEB	Missile Electronics Box

NOR	Notice of Revision
NSWC	Naval Surface Warfare Center
OCM	Original Component Manufacturers
OEM	Original Equipment Manufacturer
OPSEC	Operation Security (OPSEC) Plan
PCA	Physical Configuration Audit
PHD	Port Hueneme Division
POC	Point of Contact
PRR	Production Readiness Review
QA	Quality Assurance
QPR	Quarterly Program Review
SMT	Surface Mount Technology
SOW	Statement of Work
TDP	Technical Data Package
VLS	Vertical Launching System

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-202-H001 ADDITIONAL DEFINITIONS--BASIC

(Oct 2018)

(a) Department means the Department of the Navy.

(b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (Oct 2018)

(a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

(1) The support contractor not disclose any information;

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018) (Oct 2018)

(a) Definitions.

(i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).

(ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

(End of Text)

C-211-H017 UPDATING SPECIFICATIONS AND STANDARDS (NAVSEA) (DEC 2018)**(Dec 2018)**

The contractor may request that this contract be updated to include the current version of the applicable specification or standard if the update does not affect the form, fit or function of any deliverable item or increase the cost/price of the item to the Government. The contractor should submit update requests to the Procuring Contracting Officer with copies to the Administrative Contracting Officer and cognizant program office representative for approval. The contractor shall perform the contract in accordance with the existing specifications and standards until notified of approval/disapproval of its request to update by the Procuring Contracting Officer. Any approved alternate specifications or standards will be incorporated into the contract.

(End of Text)**C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)****(Jan 2019)**

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)**C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)****(Oct 2018)**

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with detailed obligations to which the Contractor committed itself in Proposal TBD dated TBD in response to NAVSEA Solicitation No. N6339426R0005.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

(End of Text)**C-227-H009 ACCESS TO DATA OR COMPUTER SOFTWARE WITH RESTRICTIVE MARKINGS (NAVSEA) (JAN 2019)****(Jan 2019)**

(a) Performance under this contract may require that the Contractor have access to technical data, computer software, or other sensitive data of another party that contains restrictive markings. If access to such data or software is required or to be provided, the Contractor shall enter into a written agreement with such party prior to gaining access to such data or software. The agreement shall address, at a minimum, (1) access to, and use of, the restrictively marked data or software exclusively for the purposes of performance of the work required by this contract, and (2) safeguards to protect such data or software from unauthorized use or disclosure for so long as the data or software remains properly restrictively marked. In addition, the agreement shall not impose any limitation upon the Government or its employees with respect to such data or software. A copy of the executed agreement shall be provided to the Contracting Officer. The Government may unilaterally modify the contract to list those third parties with which the Contractor has agreement(s).

(b) The Contractor agrees to: (1) indoctrinate its personnel who will have access to the data or software as to the restrictions under which access is granted; (2) not disclose the data or software to another party or other Contractor personnel except as authorized by the Contracting Officer; (3) not engage in any other action, venture, or employment wherein this information will be used, other than under this contract, in any manner inconsistent with this requirement; (4) not disclose the data or software to any other party, including, but not limited to, joint venturer, affiliate, successor, or assign of the Contractor; and (5) reproduce the restrictive stamp, marking, or legend on each use of the data or software whether in whole or in part.

(c) These restrictions on use and disclosure of the data and software also apply to information received from the Government through any means to which the Contractor has access in the performance of this contract that contains restrictive markings.

(d) The Contractor agrees that it will promptly notify the Contracting Officer of any attempt to gain access to any information with restrictive markings. Such notification shall include the name and organization of the individual, company, or Government representative seeking access to such information.

(e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information covered by paragraph (a), substituting "subcontractor" for "Contractor" where appropriate.

(f) Compliance with this requirement is a material requirement of this contract.

(End of Text)

C-227-H006 DATA REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

The data to be furnished hereunder shall be prepared in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit(s) A, attached hereto.

(End of Text)

C-233-H001 DOCUMENTATION OF REQUESTS FOR EQUITABLE ADJUSTMENT--BASIC (NAVSEA) (OCT 2018)

(Oct 2018)

(a) For the purposes of this special contract requirement, the term "change" includes not only a change that is made pursuant to a written order designated as a "change order" but also (1) an engineering change proposed by the Government or by the Contractor and (2) any act or omission to act on the part of the Government in respect of which a request is made for equitable adjustment.

(b) Whenever the Contractor requests or proposes an equitable adjustment of \$100,000 or more per vessel in respect to a change made pursuant to a written order designated as a "change order" or in respect to a proposed engineering change and whenever the Contractor requests an equitable adjustment in any amount in respect to any other act or omission to act on the part of the Government, the proposal supporting such request shall contain the following information for each individual item or element of the request:

(1) A description (i) of the work required by the contract before the change, which has been deleted by the change, and (ii) of the work deleted by the change which already has been completed. The description is to include a list of components, equipment, and other identifiable property involved. Also, the status of manufacture, procurement, or installation of such property is to be indicated. Separate description is to be furnished for design and production work. Items of raw material, purchased parts, components and other identifiable hardware, which are made excess by the change and which are not to be retained by the Contractor, are to be listed for later disposition;

(2) Description of work necessary to undo work already completed which has been deleted by the change;

(3) Description of work not required by the terms hereof before the change, which is substituted or added by the change. A list of components and equipment (not bulk materials or items) involved should be included. Separate descriptions are to be furnished for design work and production work;

(4) Description of interference and inefficiencies in performing the change;

(5) Description of each element of disruption and exactly how work has been, or will be disrupted:

(i) The calendar period of time during which disruption occurred, or will occur;

(ii) Area(s) aboard the vessel where disruption occurred, or will occur;

(iii) Trade(s) disrupted, with a breakdown of manhours for each trade;

(iv) Scheduling of trades before, during, and after period of disruption;

(v) Description of measures taken to lessen the disruptive effect of the change;

(6) Delay in delivery attributable solely to the change;

(7) Other work attributable to the change;

(8) Supplementing the foregoing, a narrative statement of the direct "causal" relationship between any alleged Government act or omission and the claimed consequences therefor, crossreferenced to the detailed information provided as required above; and

(9) A statement setting forth a comparative enumeration of the amounts "budgeted" for the cost elements, including the material costs, labor hours and pertinent indirect costs, estimated by the Contractor in preparing its initial and ultimate proposal (s) for this contract, and the amounts claimed to have been incurred and/or projected to be incurred corresponding to each such "budgeted cost" elements.

(c) Each proposal in excess of \$100,000 submitted in support of a claim for equitable adjustment under any requirement of this contract shall, in addition to the information required by paragraph (b) hereof, contain such information as the Contracting Officer may require with respect to each individual claim item.

(d) It is recognized that individual claims for equitable adjustment may not include all of the factors listed in paragraph (b) above. Accordingly, the Contractor is required to set forth in its proposal information only with respect to those factors which are comprehended in the individual claim for equitable adjustment. In any event, the information furnished hereunder shall be in sufficient detail to permit the Contracting Officer to cross-reference the claimed increased costs, or delay in delivery, or both, as appropriate, submitted pursuant to paragraph (c) of this requirement, with the information submitted pursuant to paragraph (b) hereof.

(End of Text)

C-242-H002 POST AWARD MEETING (NAVSEA) (OCT 2018)

(Oct 2018)

(a) A post-award meeting with the successful offeror will be conducted within [*] days after award of the [contract / task order]. The meeting will be held at the address below:

Location/Address: [*]

(b) The contractor will be given [*] working days notice prior to the date of the meeting by the Contracting Officer.

(c) The requirement for a post-award meeting shall in no event constitute grounds for excusable delay by the contractor in performance of any provisions in the [contract / task order].

(d) The post-award meeting will include, but is not limited to, the establishment of work level points of contact, determining the administration strategy, roles and responsibilities, and ensure prompt payment and close out. Specific topics shall be mutually agreed to prior to the meeting.

[*] To be specified at [contract / task order] award

(End of Text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(Oct 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of Text)

C-243-H003 CONFIGURATION MANAGEMENT (NAVSEA) (APR 2024)

(Apr 2024)

(a) Baseline Definition - All contractual documentation in effect at the time of contract award shall constitute the Contract Baseline, which shall be considered incorporated in the baseline documentation.

(b) General Requirement -

(1) The Contractor shall maintain a Configuration Control Program to assure that all detail level work being performed under this contract is in compliance with appropriate baseline documentation. The Contractor shall prepare a Configuration Management Plan in accordance with the requirements of the contract. If required, the Contractor's Configuration Management Plan shall be submitted through the appropriate Contract Data Requirements List (CDRL) for approval by the Government.

(2) Whenever a situation arises wherein the Contractor cannot comply with a baseline document, or whenever intent of such documentation is significantly changed by detail level documentation, the Contractor shall submit change documents to modify the baseline to resolve the conflict or to allow noncompliance. Whenever the cost of implementing a proposed change is less than the threshold requiring certified cost or pricing data, the Contractor shall provide such detail of related costs as to allow the Government to determine an equitable adjustment for the change document submission. Whenever the contract cost changes by an amount greater than the threshold requiring certified cost or pricing data, the Contractor shall complete such cost and pricing data as the Contracting Officer shall require detailing all related costs, and attach it to the change document. Requirements for cost and pricing data shall be determined by the gross amount of the change unless otherwise directed by the Contracting Officer. Change documentation shall be submitted to the Contracting Officer in accordance with the appropriate CDRL, and as described in paragraphs (c) through (f) below.

(c) Engineering Change Proposals (ECPs) - ECPs shall be prepared in accordance with the approved configuration management plan and the requirements of the contract. DI-SESS-80639E approved 11 February 2020, EIA-649-1A dated 10 August 2020, and MIL-HDBK-61B dated 7 April 2020 apply. An ECP shall be submitted whenever the detail level physical configuration, material quality, operational or functional performance of equipment or installed systems will not be in compliance with baseline design-related documents (Specifications, Contract Drawings, etc.), and a change to the baseline document is considered an appropriate means of resolving a design-related issue. The contractor shall develop documentation in sufficient detail to enable Government review and evaluation of the merits of the proposed change, including cost and scheduling impact, ship class impact if applicable, and consequences if disapproved. List all existing drawings and technical manuals impacted by the change, including a brief narrative explanation of needed changes to incorporate the ECP if approved. Provide weight and moment data incidental to the change, if applicable. The Contractor shall also prepare applicable baseline document insert sheets, with specific word changes or proposed rewrite, to facilitate baseline documentation changes.

(d) Non-Engineering Change Proposals (NECPs) - An NECP shall be submitted whenever necessary to document administrative, procedural, scheduling, or documentation changes that do not directly impact the physical configuration of the equipment. The NECP shall explain the nature of the problem, identify the applicable baseline document (i.e., Contract Data Requirement List (CDRL), Contract Clause, etc.) and provide a detailed explanation justifying the proposed course of action desired to resolve the problem. Insert sheets for applicable documents shall also be attached to facilitate change action in the event the NECP is approved.

(e) Deviations/Waivers - In the event that a baseline design-related document requirement cannot be met, and a change to the baseline document is considered inappropriate, the Contractor shall submit a Request for Variance. The explanation of "Need for Deviation/Waiver" in the DD1694 shall provide detailed justification and consequences of approval, to include technical details explaining the degree of noncompliance and the effect on ship equipment or system operation.

(f) Equitable Adjustments for Change Documentation Preparations - For its effort expended in preparing ECPs, NECPs, and Deviations/Waivers, the Contractor shall receive equitable adjustment under the following circumstances:

- (1) In the event the Contractor, on its own initiative, and without written request from the Contracting Officer, develops a change document that is later disapproved by the Government, the Contractor shall bear the cost of this effort.
- (2) To avoid such loss, and at its option, the Contractor may submit a "preliminary" document that outlines intent, but without detailed supporting documentation and request the Contracting Officer's approval for expenditure of effort to complete the detailed supporting documentation. In the event the Contracting Officer denies this request, the Contractor will bear the cost of development of the "preliminary" document, and shall make no further effort to complete detailed supporting documentation.
- (3) In the event the Contracting Officer approves the Contractor's request to develop supporting documentation, the Contractor shall be equitably compensated for its effort for both the "preliminary" and "final" documentation, regardless of whether or not the change document is later approved.
- (4) In the event the Contracting Officer requests in writing that the Contractor develop change documentation, the effort expended by the Contractor in developing such documentation shall be subject to equitable adjustment, regardless of whether or not the change document is later approved.
- (5) In the event the Contractor, on its own initiative, and without written request from the Government, develops a change document that is later approved by the Contracting Officer, the cost of developing such documentation shall be subject to equitable adjustment.
- (6) Failure to agree to such equitable adjustment in contract price shall constitute a dispute, and shall be adjudicated in accordance with the requirements of the clause entitled "Disputes" (FAR 52.2331).

(g) Any cost reduction proposal submitted pursuant to the clause entitled "Value Engineering" (FAR 52.2481) shall be submitted as a Value Engineering Change Proposal (VECP). The Contractor shall follow the VECP preparation requirements of FAR 52.248-1(c) and any additional guidance provided by the Contracting Officer.

(End of text)

C-245-H005 INFORMATION AND DATA FURNISHED BY THE GOVERNMENT--ALTERNATE I (NAVSEA) (MAY 2019) (May 2019)

- (a) Contract Specifications, Drawings and Data. The Government will furnish, if not included as an attachment to the contract, any unique contract specifications or other design or alteration data cited or referenced in Section C.
- (b) Government Furnished Information (GFI). GFI is defined as that information essential for the installation, test, operation, and interface support of all Government Furnished Material identified in an attachment in Section J. The Government shall furnish only the GFI identified in an attachment in Section J. The GFI furnished to the contractor need not be in any particular format. Further, the Government reserves the right to revise the listing of GFI as follows:

- (1) The Contracting Officer may at any time by written order:
 - (i) delete, supersede, or revise, in whole or in part, data identified in an attachment in Section J; or
 - (ii) add items of data or information to the attachment identified in Section J; or
 - (iii) establish or revise due dates for items of data or information in the attachment identified in Section J.

(2) If any action taken by the Contracting Officer pursuant to subparagraph (1) immediately above causes an increase or decrease in the costs of, or the time required for, performance of any part of the work under this contract, the contractor may be entitled to an equitable adjustment in the contract amount and delivery schedule in accordance with the procedures provided for in the "CHANGES" clause of this contract.

(c) Except for the Government information and data specified by paragraphs (a) and (b) above, the Government will not be obligated to furnish the Contractor any specification, standard, drawing, technical documentation, or other publication, notwithstanding anything to the contrary in the contract specifications, the GFI identified in an attachment in Section J, the clause of this contract entitled "Government Property" (FAR 52.245-1) or "Government Property Installation Operation Services" (FAR 52.245-2), as applicable, or any other term or condition of this contract. Such referenced documentation may be obtained:

(1) From the ASSIST database via the internet at <https://assist.dla.mil/online/start/>; or

(2) By submitting a request to the

Department of Defense Single Stock Point (DoDSSP)

Building 4, Section D

700 Robbins Avenue

Philadelphia, Pennsylvania 19111-5094

Telephone (215) 697-6396

Facsimile (215) 697-9398

Commercial specifications and standards, which may be referenced in the contract specification or any sub-tier specification or standard, are not available from Government sources and should be obtained from the publishers.

(End of Text)

C-246-H002 GOVERNMENT USE OF CONTRACTOR'S INSPECTION EQUIPMENT (NAVSEA) (Oct 2018)

The contractor's gages, measuring, and testing devices shall be made available to the Government when required to determine contractor conformance with contract requirements. If conditions warrant, the contractor's personnel shall be made available for operation of such devices and for verification of their accuracy and condition.

(End of Text)

C-246-H003 LIMITATION OF LIABILITY--HIGH VALUE ITEMS (NAVSEA) (OCT 2018) (Oct 2018)

The following items are subject to the clause of this contract entitled "Limitation of Liability--High Value Items" (FAR 52.246-24 Alternate I):

<u>CLIN</u>
0001, 0002, 0003, 0004, 0005, 0006, 0007, 0008, 0009, 0010, 0011, 0012, 0013, 0014, 0015

(End of Text)

C-247-H001 PERMITS AND RESPONSIBILITIES (NAVSEA) (DEC 2018)

(Dec 2018)

The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits for complying with any applicable Federal, State, and Municipal laws, codes, and regulations for shipping and transportation including, but not limited to, any movement over public highways of overweight/over dimensional materials.

(End of Text)

Section D - Packaging and Marking

Additional Regulation or Supplemental Clauses Incorporated by Full Text

D-211-H001 PACKAGING OF DATA (NAVSEA) (FEB 2022)

(Feb 2022)

Data to be delivered by Integrated Digital Environment (IDE) or other electronic media shall be as specified in the contract.

All unclassified data to be shipped shall be prepared for shipment in accordance with best commercial practice.

Classified reports, data, and documentation shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM), 32 CFR Part 117.

(End of Text)

D-211-H002 MARKING OF REPORTS (NAVSEA) (OCT 2018)

(Oct 2018)

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

(1) name and business address of the Contractor

(2) contract number

(3) sponsor: _____ TBD

(Name of Individual Sponsor)

NSWC PHD

(Name of Requiring Activity)

Port Hueneme, CA

(City and State)

(End of Text)

D-211-H005 IDENTIFICATION MARKING OF PARTS -- ALTERNATE I (NAVSEA) (OCT 2018) (Oct 2018)

(a) For all parts not subject to the marking requirements in DFARS 252.211-7003 - Item Unique Identification and Valuation, marking shall be accomplished in accordance with the following:

(1) Parts not manufactured to Government specifications shall be marked in accordance with generally accepted commercial practice.

(2) Parts manufactured to Government specifications shall be marked as follows:

(i) Electrical Parts - that is, all parts in electrical equipment and electrical parts when used in equipment which are not electrical in nature (e.g., electric controls and motors in a hydraulic system) - shall be identified and marked in accordance with MIL-STD-1285D(2) dated 22 June 2018, or, where MIL-STD-1285D(2) does not cover such a part, in accordance with MIL-STD-130N(1) dated 16 November 2012. Requirements of MIL-STD-1686C dated 25 October 1995 for Electrostatic Discharge Control shall be addressed.

(ii) Electronic Parts - that is, all parts in electronic equipment and electronic parts when used in equipment which are not electronic in nature (e.g., electronic fuel controls in some engines) - shall be identified and marked in accordance with Requirement 67 of MIL-HDBK-454B dated 15 April 2007 with Notice 1 dated 12 December 2012. Requirements of MIL-STD-1686C for Electrostatic Discharge Control shall be addressed.

(iii) Parts other than electrical or electronic parts (as described above) shall be identified and marked in accordance with MIL-STD-130N(1).

(b) In cases where parts are so small as not to permit identification marking as provided above, such parts shall be appropriately coded so as to permit ready identification.

(End of Text)

D-246-H003 WARRANTY NOTIFICATION FOR ITEM(S) —ALTERNATE I (NAVSEA) (APR 2024) (Apr 2024)

The Contractor shall apply a permanent warranty notification stamping or marking on each warranted deliverable end item and its container in accordance with MIL-STD-129R with Change 3 dated 25 February 2023 and MIL-STD-130N(1) dated 16 November 2012. The notification shall be placed in close proximity to other required stamping or markings so as to be easily readable by personnel. The warranty notification shall read:

THIS ITEM WARRANTED UNDER CONTRACT ___TBD___ TO CONFORM TO DESIGN, MANUFACTURING, AND PERFORMANCE REQUIREMENTS AND BE FREE FROM DEFECTS IN MATERIAL AND WORKMANSHIP FOR ___ONE YEAR___ FROM DATE OF ACCEPTANCE. IF ITEM IS DEFECTIVE NOTIFY ___TECHNICAL POINT OF CONTACT___ AND PCO.

(End of Text)

D-247-W001 PROHIBITED PACKING MATERIALS (NAVSEA) (OCT 2018) (Oct 2018)

The use of asbestos, excelsior, newspaper or shredded paper (all types including waxed paper, computer paper and similar hygroscopic or non-neutral material) is prohibited. In addition, the use of yellow wrapping or packaging material is prohibited except where used for the containment of radioactive material. Loose fill polystyrene is prohibited for shipboard use.

(End of Text)

D-247-H005 MARKING AND PACKING LIST(S) – ALTERNATE I (NAVSEA) (OCT 2018) (Oct 2018)

(a) Marking. Shipments, shipping containers and palletized unit loads shall be marked in accordance with MIL-STD-129R with Change 1 dated 24 May 2018.

(b) Packing List(s). A packing list (DD Form 250 Material Inspection and Receiving Report may be used) identifying the contents of each shipment, shipping container or palletized unit load shall be provided by the Contractor with each shipment in accordance with the above cited MIL-STD. When a contract line item identified under a single stock number includes an assortment of related items such as kit or set components, detached parts or accessories, installation hardware or material, the packing list(s) shall identify the assorted items.

Where DD Form 1348-1 or DD Form 1348-1A is applicable and an assortment of related items is included in the shipping container, a packing list identifying the contents shall be furnished.

(c) Master Packing List. In addition to the requirements in paragraph (b) above, a master packing list shall be prepared where more than one shipment, shipping container or palletized unit load comprise the contract line item being shipped. The master packing list shall be attached to the number one container and so identified.

(d) Part Identification. All items within the kit, set, installation hardware or material shall be suitably segregated and identified within the unit pack (s) or shipping container by part number and/or national stock number. Refer to the above cited MIL-STD for marking of assorted (related-unrelated) items.

(End of Text)

D-247-H001 ADDITIONAL MARKING REQUIREMENTS FOR FMS ITEMS (NAVSEA) (OCT 2018) (Oct 2018)

(a) The following identifying marks shall appear on the outside of each box, parcel and/or crate and all shipping papers included in each shipment:

NAVY FMS CASE	<u>TBD</u> _____
REQUISITION NO.	<u>TBD</u> _____
ITEM DESCRIPTION	<u>TBD</u> _____

If a consolidated shipment of several items in one container is forwarded, add to the above information "CONSOLIDATED SHIPMENT, CONTAINS ___TBD___ ITEMS".

(b) The inscription "UNITED STATES OF AMERICA" shall be affixed in a suitable size indelible stencil, label or printed form on all external shipping containers or the exterior surface of uncrated items.

(c) All invoices, correspondence, reports and other documents shall be identified with the appropriate FMS case designator, requisition number(s), and item description(s).

(End of Text)

D-247-W002 UNPACKING INSTRUCTIONS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Location on Container. When practical, one set of the unpacking instructions will be placed in a heavy water-proof envelope prominently marked "UNPACKING INFORMATION" and firmly affixed to the outside of the shipping container in a protected location, preferably between the cleats on the end of the container adjacent to the identification marking. If the instructions cover a set of equipment packed in multiple containers, the instructions will be affixed to the number one container of the set. When the unpacking instructions are too voluminous to be affixed to the exterior of the container, they will be placed inside and directions for locating them will be provided in the envelope marked "UNPACKING INFORMATION".

(b) Marking Containers. When unpacking instructions are provided, shipping containers will be stenciled "CAUTION-THIS EQUIPMENT MAY BE SERIOUSLY DAMAGED UNLESS UNPACKING INSTRUCTIONS ARE CAREFULLY FOLLOWED. UNPACKING INSTRUCTIONS ARE LOCATED TBD." When practical, this marking will be applied adjacent to the identification marking on the side of the container.

(End of Text)

D-247-H002 PACKAGING OF SUPPLIES—BASIC (NAVSEA) (DEC 2020)

(Dec 2020)

Item(s) 0001, 0002, 0003, 0004, 0005, 0006, 0007, 0008, 0009, 0010, 0011, 0012, 0015 The supplies furnished hereunder shall be packaged in accordance with ASTM-D-3951-18, Standard Practice for Commercial Packing.

(End of Text)

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Origin	Government	Origin	Government
0002	Origin	Government	Origin	Government
0003	Origin	Government	Origin	Government
0004	Origin	Government	Origin	Government
0005	Origin	Government	Origin	Government
0006	Origin	Government	Origin	Government
0007	Origin	Government	Origin	Government
0008	Origin	Government	Origin	Government
0009	Origin	Government	Origin	Government
0010	Origin	Government	Origin	Government
0011	Origin	Government	Origin	Government
0012	Origin	Government	Origin	Government
0013	N/A	N/A	N/A	N/A
0014	N/A	N/A	N/A	N/A
0015	Origin	Government	Origin	Government
0016	N/A	N/A	N/A	N/A

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-2	Inspection of Supplies-Fixed-Price.	Aug 1996		
52.246-16	Responsibility for Supplies.	Apr 1984		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

E-246-H022 INSPECTION AND TEST RECORDS (NAVSEA) (JAN 2019)

(Jan 2019)

Inspection and test records shall, as a minimum, indicate the nature of the observations, number of observations made, and the number and type of deficiencies found. Data included in inspection and test records shall be complete and accurate, and shall be used for trend analysis and to assess corrective action and effectiveness. The data shall, on request, be identified and made available for on-site review by the Contracting Officer or designated Government representative.

(End of Text)

E-246-W004 PROCUREMENT QUALITY ASSURANCE INSPECTION AND ACCEPTANCE (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Initial inspection of the supplies to be furnished hereunder shall be made by TBD at contract award at the contractor's or subcontractor's plant located at TBD. The contractor shall notify the cognizant inspector when the material is available for inspection. The place designated for such inspections shall not be changed without authorization of the Contracting Officer. Final inspection and acceptance shall be made by NSWC PHD within 90 days after receipt.

(b) Initial inspection shall consist of quality assurance at point of manufacture or assembly and check/test prior to shipment. Final inspection and acceptance will be made by the Receiving Activity after installation/check out/testing of the supplies.

(End of Text)

E-246-H013 INSPECTION AND ACCEPTANCE OF DATA (NAVSEA) (OCT 2018)

(Oct 2018)

Inspection and acceptance of all data shall be as specified on the attached Contract Data Requirements List(s), DD Form 1423.

(End of Text)

E-246-W007 NOTIFICATION OF INSPECTION OR TEST (NAVSEA) (OCT 2018)

(Oct 2018)

The Contractor agrees to notify TBD, in writing, when the material will be inspected and/or tested. A minimum of __10__ working days is required to arrange such a visit.

(End of Text)

E-246-H020 QUALITY MANAGEMENT SYSTEM REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

The Contractor shall provide and maintain a quality management system that, as a minimum, adheres to the requirements of ASQ/ANSI/ISO 9001: 2015 "Quality Management Systems - Requirements" and supplemental requirements imposed by this contract. The quality management system procedures, planning, and all other documentation and data that comprise the quality management system shall be made available to the Government for review. Existing quality documents that meet the requirements of this contract may continue to be used. The Government may perform any necessary inspections, verifications, and evaluations to ascertain conformance to requirements and the adequacy of the implementing procedures. The Contractor shall flow down such standards, as applicable, to lower-tier subcontractors under instances covered in FAR 52.246-11(b) or at the direction of the Contracting Officer. The Government reserves the right to disapprove the quality management system or portions thereof when it fails to meet the contractual requirements.

(End of Text)

E-246-W003 INSPECTION STANDARDS (NAVSEA) (OCT 2018)

(Oct 2018)

Acceptance inspection of lots or batches will be in accordance with American National Standard ANSI/ASQ Z1.4-2003. Unless otherwise specified, attributes, which if defective would prohibit or reduce the usability of the product for its intended purpose, will be inspected at an acceptable quality level (AQL) of 1.0. Attributes which do not materially reduce the usability of the product will be inspected at an AQL of 2.5. Any attributes classified as critical on the technical documentation will be inspected on each unit of product submitted. The right is reserved to reject any unit of product found nonconforming during inspection whether that unit of product forms a part of a sample or not, and whether the lot or batch as a whole is accepted or rejected.

(End of Text)

Section F - Deliveries or Performance

Overall Contract Delivery Period

Period of Performance

From 01 Oct 2026 to 30 Sep 2031

The ordering period above may include unexercised options

Line Item	Delivery Schedule	Estimated Quantity	Address and POC	Special Handling/Notes
0001	Period of Performance From 01 Oct 2026 To 30 Sep 2031	310 Each		FoB Details Contractor Destination
0002	Period of Performance From 01 Oct 2026 To 30 Sep 2031	45 Set		FoB Details Contractor Destination
0003	Period of Performance From 01 Oct 2026 To 30 Sep 2031	45 Set		FoB Details Contractor Destination
0004	Period of Performance From 01 Oct 2026 To 30 Sep 2031	10 Set		FoB Details Contractor Destination
0005	Period of Performance From 01 Oct 2026 To 30 Sep 2031	10 Set		FoB Details Contractor Destination
0006	Period of Performance From 01 Oct 2026 To 30 Sep 2031	100 Each		FoB Details Contractor Destination
0007	Period of Performance From 01 Oct 2026 To 30 Sep 2031	2,200 Set		FoB Details Contractor Destination
0008	Period of Performance From 01 Oct 2026	251 Set		FoB Details Contractor Destination

	To 30 Sep 2031			
0009	Period of Performance From 01 Oct 2026 To 30 Sep 2031	100 Set		FoB Details Contractor Destination
0010	Period of Performance From 01 Oct 2026 To 30 Sep 2031	400 Set		FoB Details Contractor Destination
0011	Period of Performance From 01 Oct 2026 To 30 Sep 2031	240 Set		FoB Details Contractor Destination
0012	Period of Performance From 01 Oct 2026 To 30 Sep 2031	240 Set		FoB Details Contractor Destination
0013	Period of Performance From 01 Oct 2026 To 30 Sep 2031	20 Lot		FoB Details Contractor Destination
0014	Period of Performance From 01 Oct 2026 To 30 Sep 2031	1 Lot		FoB Details Contractor Destination
0015	Period of Performance From 01 Oct 2026 To 30 Sep 2031	100 Lot		FoB Details Contractor Destination
0016	Period of Performance From 01 Oct 2026 To 30 Sep 2031	1 Each		FoB Details Contractor Destination

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.242-17	Government Delay of Work.	Apr 1984		
52.247-34	F.o.b. Destination.	Jan 1991		
52.247-48	F.o.b. Destination-Evidence of Shipment.	Feb 1999		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-211-W001 PARTIAL DELIVERIES (NAVSEA) (OCT 2018)

(Oct 2018)

Partial deliveries will not be accepted without specific approval from the Contracting Officer.

(End of Text)

F-242-H001 CONTRACTOR NOTICE REGARDING LATE DELIVERY (NAVSEA) (OCT 2018)

(Oct 2018)

In the event the contractor anticipates or encounters difficulty in complying with the contract delivery schedule or date, the contractor shall immediately notify, in writing, the Contracting Officer and the cognizant Contract Administration Services Office, if assigned. The notice shall give the pertinent details; however, such notice shall not constitute a waiver by the Government of any contract delivery schedule, or of any rights or remedies provided by law or under this contract.

(End of Text)

**F-247-H004 RESTRICTIONS FOR SHIPPING TO MILITARY AIR OR WATER PORT/
TERMINAL (NAVSEA) (OCT 2018)**

(Oct 2018)

The Contractor shall not ship directly to a military air or water port/terminal without authorization by the cognizant Contract Administration Office.

(End of Text)

F-247-H001 DELIVERY OF DATA (NAVSEA) (OCT 2018)

(Oct 2018)

All data to be furnished under this contract shall be delivered prepaid to the destination(s) and at the time(s) specified on the Contract Data Requirements List(s), DD Form 1423.

(End of Text)

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.232-7002	Progress Payments for Foreign Military Sales Acquisitions.	May 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2 in 1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>TBD</u>
Issue By DoDAAC	<u>N63394</u>
Admin DoDAAC	<u>TBD</u>
Inspect By DoDAAC	<u>TBD</u>
Ship To Code	<u>N63394</u>
Ship From Code	<u>TBD</u>
Mark For Code	<u>TBD</u>
Service Approver (DoDAAC)	<u>TBD</u>
Service Acceptor (DoDAAC)	<u>TBD</u>
Accept at Other DoDAAC	<u>TBD</u>
LPO DoDAAC	<u>TBD</u>

DCAA Auditor DoDAAC	<u>TBD</u>
Other DoDAAC(s)	<u>TBD</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-216-H003 Ordering Process for Multiple Award Contracts (MACS) (NAVSEA) (FEB 2024)

(Feb 2024)

(a) General. One or more orders may be issued during the performance period of this contract. The Contractor agrees to accept and perform orders issued by the Contracting Officer within the scope and within the maximum value of this contract. It is understood and agreed that the Government has no obligation to issue any orders under this contract, except the minimum order. In the event of any inconsistency between any order and this contract, this contract shall take precedence.

(b) Fair Opportunity for Orders.

(1) All orders in excess of the micro-purchase threshold to be issued under this indefinite delivery, indefinite quantity (IDIQ) MAC will be competed per FAR 16.505(b)(1), unless one of the exceptions to fair opportunity at FAR 16.505(b)(2)(i) applies. Orders will be tailored to specific project requirements and issued per the evaluation criteria established in the order solicitation.

(2) During the Fair Opportunity Process, the Government may elect to restrict competition for orders, either totally or in part, to Small Businesses or other available Small Business Administration (SBA) small business designations (i.e., 8(a), HubZone, Service Disabled Veteran Owned Small Business (SDVOSB), Economically Disadvantaged Women-Owned Small Business (EDWOSB)). The order solicitation will notify Offerors if the order will be solicited on a restricted or an unrestricted basis.

(c) Competitive Ordering Process.

(1) Pre solicitation and solicitation. All eligible IDIQ MAC holders will receive notification of the solicitation for each order via email. All proposed orders will incorporate all terms of the IDIQ MAC unless otherwise specified in the proposed order. IDIQ MAC holders will be provided a reasonable response period to prepare and submit proposals based on the estimated dollar value and complexity of the proposed order.

(i) The due date for the order proposals will be set forth in each solicitation.

(ii) Proposals received from IDIQ MAC holders not eligible to participate in the competition for the specific order will not be considered.

(2) Evaluation. The Government will evaluate proposals against the selection criteria contained in the order solicitation. At a minimum, evaluation criteria will include:

(i) Price/Cost

(3) Order Execution. Upon completion of evaluations of proposals for an order, the Contracting Officer will issue an order to the IDIQ MAC holder whose proposal is most advantageous to the Government under the selection criteria set forth in the order solicitation. The Government reserves the right to issue one, more than one, or no orders following completion of evaluations. The Contracting Officer will notify the IDIQ MAC holders of the selection decision.

(d) Unauthorized Work. The Contractor is not authorized to commence performance prior to issuance of a signed order. Orders shall either be funded at time of issuance, or under the authority of FAR 52.232-18, Availability of Funds (if included in the order).

(e) Ordering Authority and Tracking. Contracting Officers from the below listed activities are authorized to issue orders under this contract for services or supplies listed in Section B from contract award through the end of the ordering periods specified in Section F.

NSWC PHD

(List activities)

(End of text)

G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019) (Jan 2019)

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of Text)

G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024) (Feb 2024)

Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) (https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions).

(End of text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023) (Oct 2023)

- (a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.
- (b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.
- (c) The points of contact are as follows:

- (i) The Procuring Contracting Officer (PCO) is:

Name: John Carhart
Address: 4363 Missile Way, Port Hueneme, CA 93043
Phone: (805) 330-0383
E-mail: john.s.carhart.civ@us.navy.mil

- (ii) The Contract Specialist is:

Name: Michael Torres
Address: 4363 Missile Way, Port Hueneme, CA 93043
E-mail: michael.l.torres2.civ@us.navy.mil

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: TBD
Address: TBD
Phone: TBD
E-mail: TBD

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: TBD
Address: TBD
Phone: TBD
E-mail: TBD

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is:

Name: TBD
Address: TBD
Phone: TBD
E-mail: TBD

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is:

Name: TBD
Address: TBD
Phone: TBD
E-mail: TBD

[*] To be completed at contract award

(End of Text)

G-242-W001 CONTRACT ADMINISTRATION FUNCTIONS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) In accordance with FAR 42.302(a) all functions listed are delegated to the ACO except the following items to be retained by the PCO:

TBD _____

(b) In accordance with FAR 42.302(b), the following additional functions are delegated to the ACO:

TBD _____

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal,

delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

Area	From	TO
Contracts, NSWC PHD Code 02	08:00 PDT	16:00 PDT

(g) All deliveries to the Receiving Officer, shall be made Monday through Friday from 08:00 PDT to 16:00 PDT, local time. Deliveries will not be accepted after 16:00 PDT. No deliveries will be accepted on federal government holidays.

(End of Text)

Section H - Special Contract Requirements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

H-209-H003 REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA) (NOV 2022) (Nov 2022)

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).
- (c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.
- (d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.
- (e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

H-246-H001 CALIBRATION SYSTEM REQUIREMENTS (NAVSEA) (FEB 2023)

(Feb 2023)

(a) Definitions:

(1) All definitions, with the exception of Commercial Service Provider, are found in OPNAVINST 3960.16 (series).

(2) Commercial Service Providers. Suppliers of tools, instruments, fixtures, test, measurement, and diagnostic equipment, including original equipment manufacturers, who may calibrate their own products but are not engaged in calibration as a major line of business, and other commercial laboratories that provide either calibration services in support of Navy contracts, or low volume, model specific, or unique parameter calibration services.

(b) The accuracy of Navy and Contractor calibrated equipment used for quantitative and qualitative measurements are ensured through measurement traceability. The Contractor is required to ensure that all calibrated equipment used for quantitative or qualitative measurements required for the research, design, test, production, and maintenance of NAVSEA systems will be maintained and calibrated in accordance with references OPNAVINST 3960.16 and NAVSEAINST 4734.1. Calibration sources shall be accredited by a U.S. based, Navy approved accreditation body to U.S. national standards:

(1) ANSI/NCSL Z540.3, Requirements for the Calibration of Measuring and Test Equipment, dated 3 Aug 2006; or

(2) ISO/IEC 17025:2017, General Requirements for the Competence of Testing and Calibration Laboratories (3rd Edition), dated 29 Nov 2017; or

(3) Certified by the U.S. Navy to NAVSEA 04-4734, Navy and Marine Corps Calibration Laboratory Audit /Certification Manual.

(c) ISO/IEC 17025:2017 and ANSI/NCSL Z540.3 accreditations must be performed by a U.S. based accreditation body. Calibration accreditation must include the parameters required to execute the calibration at appropriate ranges and tolerances. A calibration certificate meeting the requirements of ANSI/NCSL Z540.3 or ISO/IEC 17025:2017 must be provided with the returned calibrated unit. The calibration certificate must be evaluated to confirm that the calibration was performed within the laboratory's accreditation scope and that each calibration measurement met or exceeded a 4:1 Test Uncertainty Ratio (TUR).

(d) Certification to Navy standard NAVSEA 04-4734, is acceptable in place of ANSI/NCSL Z540.3 and ISO /IEC 17025:2017 accreditations. For activities certified to NAVSEA 04-4734, calibrations must be evaluated to confirm that the calibration was performed within the laboratory's NAVSEA scope of certification, and calibration event records shall be provided to the Government upon request. Calibration intervals that deviate from NAVSEA OD 45845, Metrology Requirements List (METRL), shall reflect Test, Measurement and Diagnostic Equipment (TMDE) end of period reliability greater than 85%. TMDE reliability data shall be provided upon request. TURs shall be greater than or equal to 4:1, or ensure a Probability of False Acceptance (PFA) of 2% or less and a Probability of False Rejections (PFR) of 15% or less. Measurement traceability, including TUR, PFA, and PFR shall be documented in accordance to MIL-STD-1839. Calibration procedures, methods, and measurement traceability used by the Contractor shall be provided to the Government upon request.

(e) All calibrations supporting this contract shall meet the requirements of OPNAVINST 3960.16. If the Contractor executes, subcontracts or outsources the initial or reoccurring calibration of calibrated equipment, the respective calibration laboratory, and all of their employees who perform calibration or supply calibrated equipment, shall be certified or accredited to the requirements of paragraphs (b), (c), and (d).

(f) Contractors electing certification to NAVSEA 04-4734 will contact the Contracting Officer's Representative (COR) or Technical Point of Contact (TPOC) within 60 days of contract award, who will then contact the NAVSEA09MM METCAL Technical Warrant Holder (TWH), at NAVSEA_METCAL_INSERVICE@us.navy.mil, to begin the Navy certification process.

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.210-1	Market Research. (Deviation)	Feb 2026		
52.211-5	Material Requirements. (Deviation)	Feb 2026		
52.215-2	Audit and Records-Negotiation. (Deviation)	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format. (Deviation)	Feb 2026		
52.215-9	Changes or Additions to Make-or-Buy Program.	Oct 1997		
52.219-8	Utilization of Small Business Concerns. (Deviation)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Deviation)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Deviation) (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.219-16	Liquidated Damages-Subcontracting Plan. (Deviation)	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation)	Feb 2026		
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment. (Deviation)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation)	Feb 2026		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-1	Payments.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-9	Limitation on Withholding of Payments.	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.232-16	Progress Payments. (Alternate III)	Feb 2026	Alternate III	Jun 2020
52.232-17	Interest.	May 2014		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Deviation)	Feb 2026		
52.233-1	Disputes. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.234-1	Industrial Resources Developed Under Title III of the Defense Production Act. (Deviation)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed Price. (Deviation)	Feb 2026		

52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026
52.245-1	Government Property.	Sep 2021
52.245-9	Use and Charges.	Apr 2012
52.246-23	Limitation of Liability.	Feb 1997
52.246-24	Limitation of Liability-High-Value Items.	Feb 1997
52.246-26	Reporting Nonconforming Items.	Aug 2024
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984
52.253-1	Computer Generated Forms. (Deviation)	Feb 2026

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.215-7015	Program Should-Cost Review.	Nov 2019		
252.216-7010	Postaward Debriefings for Task Orders and Delivery Orders.	Oct 2025		
252.217-7028	Over and Above Work.	Dec 1991		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7009	Restriction on Acquisition of Certain Articles Containing Specialty Metals.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7021	Trade Agreements.	Feb 2024		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Aug 2025		
252.227-7016	Rights in Bid or Proposal Information.	Jan 2025		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.228-7005	Mishap Reporting and Investigation Involving Aircraft, Missiles, and Space Launch Vehicles.	Nov 2019		
252.232-7004	DoD Progress Payment Rates (DEVIATION 2020-O0010)	Oct 2014	Deviation 2020-O0010	Mar 2020
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.242-7004	Material Management and Accounting System.	Jan 2025		
252.242-7006	Accounting System Administration.	Jan 2025		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7001	Contractor Purchasing System Administration. (Alternate I)	Jan 2025	Alternate I	Jan 2025
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7001	Warranty of Data. (Alternate II)	Mar 2014	Alternate II	Mar 2014
252.246-7003	Notification of Potential Safety Issues.	Jan 2023		
252.246-7006	Warranty Tracking of Serialized Items.	Mar 2016		

252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System.	Jan 2023
252.246-7008	Sources of Electronic Parts.	Jan 2023
252.247-7023	Transportation of Supplies by Sea.	Oct 2024

FAR Clauses Incorporated by Full Text

52.216-18 Ordering.

(Aug 2020)

Ordering (Aug 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 01 October 2026 through 30 September 2031.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when-
- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either-
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.
- (End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

- (a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than TBD, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order.* The Contractor is not obligated to honor-
- (1) Any order for a single item in excess of TBD;
 - (2) Any order for a combination of items in excess of TBD; or
 - (3) A series of orders from the same ordering office within TBD days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
- (c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within TBD days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.
- (End of clause)

52.216-22 Indefinite Quantity. (Deviation)

(Feb 2026)

Indefinite Quantity (Feb 2026) (Deviation)

- (a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after TBD.

(End of clause)

52.216-32 Task-Order and Delivery-Order Ombudsman.

(Sep 2019)

Task-Order and Delivery-Order Ombudsman (Sept 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract. TBDTBDTBD.

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation)

(Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation) (Alternate I) (Feb 2026) Alternate I (Feb 2026)

Alternate I (Feb 2026) (Deviation). As prescribed in 19.101(a)(2)(iii)(B), substitute the following paragraph (g)(1) for paragraph (g)(1) of the basic clause:

(g)(1) The Contractor represents its small business size status for each one of the NAICS codes assigned to this contract.

NAICS Code	Small business concern (yes/no)

<u>334519</u>	<u>TBD</u>
==	==
==	==

52.232-16 Progress Payments. (Deviation)

(Feb 2026)

Progress Payments (Feb 2026) (Deviation)

The Government will make progress payments to the Contractor when requested as work progresses, but not more frequently than monthly, in amounts of \$2,500 or more approved by the Contracting Officer, under the following conditions:

(a) Computation of amounts.

(1) Unless the Contractor requests a smaller amount, the Government will compute each progress payment as 80 percent of the Contractor's total costs incurred under this contract whether or not actually paid, plus financing payments to subcontractors (see paragraph (j) of this clause), less the sum of all previous progress payments made by the Government under this contract. The Contracting Officer will consider cost of money that would be allowable under Federal Acquisition Regulation (FAR) 31.205-10 as an incurred cost for progress payment purposes.

(2) The amount of financing and other payments for supplies and services purchased directly for the contract are limited to the amounts that have been paid by cash, check, or other forms of payment, or that are determined due and will be paid to subcontractors-

(i) In accordance with the terms and conditions of a subcontract or invoice; and

(ii) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government.

(3) The Government will exclude accrued costs of Contractor contributions under employee pension plans until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's total costs for progress payments until paid).

(4) The Contractor shall not include the following in total costs for progress payment purposes in paragraph (a)(1) of this clause:

(i) Costs that are not reasonable, allocable to this contract, and consistent with sound and generally accepted accounting principles and practices.

(ii) Costs incurred by subcontractors or suppliers.

(iii) Costs ordinarily capitalized and subject to depreciation or amortization except for the properly depreciated or amortized portion of such costs.

(iv) Payments made or amounts payable to subcontractors or suppliers, except for-

(A) Completed work, including partial deliveries, to which the Contractor has acquired title; and

(B) Work under cost-reimbursement or time-and-material subcontracts to which the Contractor has acquired title.

(5) The amount of unliquidated progress payments may exceed neither (i) the progress payments made against incomplete work (including allowable unliquidated progress payments to subcontractors) nor (ii) the value, for progress payment purposes, of the incomplete work. Incomplete work shall be considered to be the supplies and services required by this contract, for which delivery and invoicing by the Contractor and acceptance by the Government are incomplete.

(6) The total amount of progress payments shall not exceed 80 percent of the total contract price.

(7) If a progress payment or the unliquidated progress payments exceed the amounts permitted by subparagraphs (a)(4) or (a)(5) of this clause, the Contractor shall repay the amount of such excess to the Government on demand.

(8) Notwithstanding any other terms of the contract, the Contractor agrees not to request progress payments in dollar amounts of less than \$2,500. The Contracting Officer may make exceptions.

(9) The costs applicable to items delivered, invoiced, and accepted shall not include costs in excess of the contract price of the items.

(b) *Liquidation.* Except as provided in the Termination for Convenience of the Government clause, all progress payments shall be liquidated by deducting from any payment under this contract, other than advance or progress payments, the unliquidated progress payments, or 80 percent of the amount invoiced, whichever is less. The Contractor shall repay to the Government any amounts required by a retroactive price reduction, after computing liquidations and payments on past invoices at the reduced prices and adjusting the unliquidated progress payments accordingly. The Government reserves the right to unilaterally change from the ordinary liquidation rate to an alternate rate when deemed appropriate for proper contract financing.

(c) *Reduction or suspension.* The Contracting Officer may reduce or suspend progress payments, increase the rate of liquidation, or take a combination of these actions, after finding on substantial evidence any of the following conditions:

- (1) The Contractor failed to comply with any material requirement of this contract (which includes paragraphs (f) and (g) of this clause).
- (2) Performance of this contract is endangered by the Contractor's (i) failure to make progress or (ii) unsatisfactory financial condition.
- (3) Inventory allocated to this contract substantially exceeds reasonable requirements.
- (4) The Contractor is delinquent in payment of the costs of performing this contract in the ordinary course of business.
- (5) The fair value of the undelivered work is less than the amount of unliquidated progress payments for that work.
- (6) The Contractor is realizing less profit than that reflected in the establishment of any alternate liquidation rate in paragraph (b) of this clause, and that rate is less than the progress payment rate stated in subparagraph (a)(1) of this clause.

(d) *Title.*

(1) Title to the property described in this paragraph (d) shall vest in the Government. Vestiture shall be immediately upon the date of this contract, for property acquired or produced before that date. Otherwise, vestiture shall occur when the property is or should have been allocable or properly chargeable to this contract.

(2) *Property*, as used in this clause, includes all of the below-described items acquired or produced by the Contractor that are or should be allocable or properly chargeable to this contract under sound and generally accepted accounting principles and practices.

(i) Parts, materials, inventories, and work in process;

(ii) Special tooling and special test equipment to which the Government is to acquire title;

(iii) Nondurable (i.e., noncapital) tools, jigs, dies, fixtures, molds, patterns, taps, gauges, test equipment, and other similar manufacturing aids, title to which would not be obtained as special tooling under paragraph (d)(2)(ii) of this clause; and

(iv) Drawings and technical data, to the extent the Contractor or subcontractors are required to deliver them to the Government by other clauses of this contract.

(3) Although title to property is in the Government under this clause, other applicable clauses of this contract, e.g., the termination clauses, shall determine the handling and disposition of the property.

(4) The Contractor may sell any scrap resulting from production under this contract without requesting the Contracting Officer's approval, but the proceeds shall be credited against the costs of performance.

(5) To acquire for its own use or dispose of property to which title is vested in the Government under this clause, the Contractor must obtain the Contracting Officer's advance approval of the action and the terms. The Contractor shall (i) exclude the allocable costs of the property from the costs of contract performance, and (ii) repay to the Government any amount of unliquidated progress payments allocable to the property. Repayment may be by cash or credit memorandum.

(6) When the Contractor completes all of the obligations under this contract, including liquidation of all progress payments, title shall vest in the Contractor for all property (or the proceeds thereof) not-

(i) Delivered to, and accepted by, the Government under this contract; or

(ii) Incorporated in supplies delivered to, and accepted by, the Government under this contract and to which title is vested in the Government under this clause.

(7) The terms of this contract concerning liability for Government-furnished property shall not apply to property to which the Government acquired title solely under this clause.

(e) *Risk of loss.* Before delivery to and acceptance by the Government, the Contractor shall bear the risk of loss for property, the title to which vests in the Government under this clause, except to the extent the Government expressly assumes the risk. The Contractor shall repay the Government an amount equal to the unliquidated progress payments that are based on costs allocable to property that is lost (see 45.101).

(f) *Control of costs and property.* The Contractor shall maintain an accounting system and controls adequate for the proper administration of this clause.

(g) *Reports, forms, and access to records.*

(1) The Contractor shall promptly furnish reports, certificates, financial statements, and other pertinent information (including estimates to complete) reasonably requested by the Contracting Officer for the administration of this clause. Also, the Contractor shall give the Government reasonable opportunity to examine and verify the Contractor's books, records, and accounts.

(2) The Contractor shall furnish estimates to complete that have been developed or updated within six months of the date of the progress payment request. The estimates to complete shall represent the Contractor's best estimate of total costs to complete all remaining contract work required under the contract. The estimates shall include sufficient detail to permit Government verification.

(3) Each Contractor request for progress payment shall:

(i) Be submitted on Standard Form 1443, Contractor's Request for Progress Payment, or the electronic equivalent as required by agency regulations, in accordance with the form instructions and the contract terms; and

(ii) Include any additional supporting documentation requested by the Contracting Officer.

(h) *Special terms regarding default.* If this contract is terminated under the Default clause, (i) the Contractor shall, on demand, repay to the Government the amount of unliquidated progress payments and (ii) title shall vest in the Contractor, on full liquidation of progress payments, for all property for which the Government elects not to require delivery under the Default clause. The Government shall be liable for no payment except as provided by the Default clause.

(i) *Reservations of rights.*

(1) No payment or vesting of title under this clause shall (i) excuse the Contractor from performance of obligations under this contract or (ii) constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Government's rights and remedies under this clause (i) shall not be exclusive but rather shall be in addition to any other rights and remedies provided by law or this contract and (ii) shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(j) *Financing payments to subcontractors.* The financing payments to subcontractors mentioned in paragraphs (a)(1) and (a)(2) of this clause shall be all financing payments to subcontractors or divisions, if the following conditions are met:

(1) The amounts included are limited to-

(i) The unliquidated remainder of financing payments made; plus

(ii) Any unpaid subcontractor requests for financing payments.

(2) The subcontract or interdivisional order is expected to involve a minimum of approximately 6 months between the beginning of work and the first delivery; or, if the subcontractor is a small business concern, 4 months.

(3) If the financing payments are in the form of progress payments, the terms of the subcontract or interdivisional order concerning progress payments-

(i) Are substantially similar to the terms of this clause for any subcontractor that is a large business concern, or this clause with its *Alternate I* for any subcontractor that is a small business concern;

(ii) Are at least as favorable to the Government as the terms of this clause;

(iii) Are not more favorable to the subcontractor or division than the terms of this clause are to the Contractor;

(iv) Are in conformance with the requirements of FAR 32.504(e); and

(v) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(4) If the financing payments are in the form of performance-based payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are substantially similar to the Performance-Based Payments clause at FAR 52.232-32 and meet the criteria for, and definition of, performance-based payments in FAR Part 32;

(ii) Are in conformance with the requirements of FAR 32.504(f); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(5) If the financing payments are in the form of commercial product or commercial service financing payments, the terms of the subcontract or interdivisional order concerning payments-

(i) Are constructed in accordance with FAR 32.206(c) and included in a subcontract for a commercial product or commercial service purchase that meets the definition and standards for acquisition of commercial products and commercial services in FAR parts 2 and 12;

(ii) Are in conformance with the requirements of FAR 32.504(g); and

(iii) Subordinate all subcontractor rights concerning property to which the Government has title under the subcontract to the Government's right to require delivery of the property to the Government if-

(A) The Contractor defaults; or

(B) The subcontractor becomes bankrupt or insolvent.

(6) If financing is in the form of progress payments, the progress payment rate in the subcontract is the customary rate used by the contracting agency, depending on whether the subcontractor is or is not a small business concern.

(7) Concerning any proceeds received by the Government for property to which title has vested in the Government under the subcontract terms, the parties agree that the proceeds shall be applied to reducing any unliquidated financing payments by the Government to the Contractor under this contract.

(8) If no unliquidated financing payments to the Contractor remain, but there are unliquidated financing payments that the Contractor has made to any subcontractor, the Contractor shall be subrogated to all the rights the Government obtained through the terms required by this clause to be in any subcontract, as if all such rights had been assigned and transferred to the Contractor.

(9) To facilitate small business participation in subcontracting under this contract, the Contractor shall provide financing payments to small business concerns, in conformity with the standards for customary contract financing payments stated in FAR 32.113. The Contractor shall not consider the need for such financing payments as a handicap or adverse factor in the award of subcontracts.

(k) *Limitations on undefinitized contract actions.* Notwithstanding any other progress payment provisions in this contract, progress payments may not exceed 80 percent of costs incurred on work accomplished under undefinitized contract actions. A *contract action* is any action resulting in a contract, as defined in subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes. This limitation shall apply to the costs incurred, as computed in accordance with paragraph (a) of this clause, and shall remain in effect until the contract action is definitized. Costs incurred which are subject to this limitation shall be segregated on Contractor progress payment requests and invoices from those costs eligible for higher progress payment rates. For purposes of progress payment liquidation, as described in paragraph (b) of this clause, progress payments for undefinitized contract actions shall be liquidated at 80 percent of the amount invoiced for work performed under the undefinitized contract action as long as the contract action remains undefinitized. The amount of unliquidated progress payments for undefinitized contract actions shall not exceed 80 percent of the maximum liability of the Government under the undefinitized contract action or such lower limit specified elsewhere in the contract. Separate limits may be specified for separate actions.

(l) *Due date.* The designated payment office will make progress payments on the TBD day after the designated billing office receives a proper progress payment request. In the event that the Government requires an audit or other review of a specific progress payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date. Progress payments are considered contract financing and are not subject to the interest penalty provisions of the Prompt Payment Act.

(m) Progress payments under indefinite-delivery contracts. The Contractor shall account for and submit progress payment requests under individual orders as if the order constituted a separate contract, unless otherwise specified in this contract.

(End of clause)

52.243-7 Notification of Changes. (Deviation)

(Feb 2026)

NOTIFICATION OF CHANGES (FEB 2026) (DEVIATION)

(a) *Definitions.*

Contracting Officer, as used in this clause, does not include any representative of the Contracting Officer.

Specifically Authorized Representative (SAR), as used in this clause, means any person the Contracting Officer has designated by written notice (a copy shall be provided to the Contractor) that shall refer to this subparagraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) *Notice.* The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within TBD (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct that the Contractor regards as a change to the contract terms and conditions. Examples of conduct that may be regarded as a change to terms and conditions include actions, inactions, and written or oral communications. On the basis of the most accurate information available to the Contractor, the notice shall state-

- (1) The date, nature, and circumstances of the conduct regarded as a change;
- (2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;
- (3) The identification of any documents and the substance of any oral communication involved in such conduct;
- (4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;
- (5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including-
 - (i) What line items have been or may be affected by the alleged change;
 - (ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;
 - (iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;
 - (iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and
- (6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) *Continued performance.* Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance. However, if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

(d) *Government response.* The Contracting Officer shall promptly, within TBD (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either-

- (1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;
- (2) Countermand any communication regarded as a change;
- (3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or
- (4) In the event the Contractor's notice information is inadequate to make a decision under (1), (2), or (3) of paragraph (d) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) *Equitable adjustments.*

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made-

- (i) In the contract price or delivery schedule or both; and
- (ii) In such other provisions of the contract as may be affected.

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable

adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs(b) and (c) of this clause.

Note: The phrases contract price and cost wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of clause)

52.248-1 Value Engineering. (Deviation)

(Feb 2026)

VALUE ENGINEERING (FEB 2026) (DEVIATION)

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) of this clause.

(b) *Definitions.*

Acquisition savings, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include-

(1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;

(2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and

(3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral costs means agency costs of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either-

(1) Throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated; or

(2) To the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that-

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change-

(i) In deliverable end item quantities only;

(ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or

(iii) To the contract type only.

(c) *VECP preparation*. As a minimum, the Contractor shall include in each VECP the information described in paragraphs (c)(1) through (8) of this clause. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) Identification of the unit to which the VECP applies.

(4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under the Subcontracts paragraph of this clause.

(5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(6) A prediction of any effects the proposed change would have on collateral costs to the agency.

(7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission*. The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) *Government action*.

(1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates*. If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon-

(1) This contract's type (fixed-price, incentive, or cost-reimbursement);

(2) The sharing arrangement specified in paragraph (a) of this clause (incentive, program requirement, or a combination as delineated in the Schedule); and

(3) The source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings (Figure in Percent)				
	Sharing arrangement			
Contract Type	Incentive (Voluntary)		Program Requirement (Mandatory)	
	Instant Contract Rate	Concurrent and Future Contract Rate	Instant Contract Rate	Concurrent and Future Contract Rate
Fixed-price (includes fixed-price-award-fee; excludes other fixed-price incentive contracts)	*50	*50	25	25
Incentive (fixed-price or cost) (other than award fee)	(**)	*50	(**)	25
Cost-reimbursement (includes cost-plus-award-fee; excludes other cost-type incentive contracts)	***25	***25	15	15
* The Contracting Office may increase the Contractor's sharing rate to as high as 75 percent for each VECP.				
** Same sharing arrangement as the contract's profit or fee adjustment formula.				
*** The Contracting Office may increase the Contractor's sharing rate to as high as 50 percent for each VECP.				

(g) Calculating net acquisition savings.

(1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see paragraph (i)(4) of this clause). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) of this clause). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall-

(1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;

(2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;

(3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;

(4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and

(5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:

(i) Fixed-price contracts-add to contract price.

(ii) Cost-reimbursement contracts-add to contract fee.

(i) Concurrent and future contract savings.

(1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with paragraph (h)(5) of this clause. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.

(2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by-

(i) Subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset; and

(ii) Multiplying the result by the Contractor's sharing rate.

(3) The Contracting Officer shall calculate the Contractor's share of future contract savings by-

(i) Multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period;

(ii) Subtracting any Government costs or negative instant contract savings not yet offset; and

(iii) Multiplying the result by the Contractor's sharing rate.

(4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see paragraph (h)(3) of this clause) and shall not be subject to subsequent adjustment.

(5) *Alternate no-cost settlement method.* When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:

(i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.

(ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.

(j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.

(k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.

(l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments, *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.

(m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:

"These data, furnished under the Value Engineering clause of contract N6339426R0005, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations."

If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms "unlimited rights" and "limited rights" are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: CMMC Level 2 for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.208-7000 Intent to Furnish Precious Metals as Government-Furnished Material**(Dec 1991)****INTENT TO FURNISH PRECIOUS METALS AS GOVERNMENT-FURNISHED MATERIAL (DEC 1991)**

(a) The Government intends to furnish precious metals required in the manufacture of items to be delivered under the contract if the Contracting Officer determines it to be in the Government's best interest. The use of Government-furnished silver is mandatory when the quantity required is one hundred troy ounces or more. The precious metal(s) will be furnished pursuant to the Government Furnished Property clause of the contract.

(b) The Offeror shall cite the type (silver, gold, platinum, palladium, iridium, rhodium, and ruthenium) and quantity in whole troy ounces of precious metals required in the performance of this contract (including precious metals required for any first article or production sample), and shall specify the national stock number (NSN) and nomenclature, if known, of the deliverable item requiring precious metals.

<u>Precious Metal*</u>	<u>Quantity</u>	<u>Deliverable Item</u> <u>(NSN and Nomenclature)</u>
<u>TBD</u>	<u>TBD</u>	<u>TBD</u>
==	==	==
==	==	==
==	==	==
==	==	==
==	==	==
==	==	==

*If platinum or palladium, specify whether sponge or granules are required.

(c) Offerors shall submit two prices for each deliverable item which contains precious metals--one based on the Government furnishing precious metals, and one based on the Contractor furnishing precious metals. Award will be made on the basis which is in the best interest of the Government.

(d) The Contractor agrees to insert this clause, including this paragraph (d), in solicitations for subcontracts and purchase orders issued in performance of this contract, unless the Contractor knows that the item being purchased contains no precious metals.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.**(Jan 2023)****ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)**

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
<u>TBD</u>	<u>TBD</u>
=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
<u>TBD</u>	<u>TBD</u>
=====	=====
=====	=====

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

- (1) Serialize within the enterprise identifier;
- (2) Serialize within the part, lot, or batch number; or
- (3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- part.
- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
 - (2) Unique item identifier of the embedded subassembly, component, or part.
 - (3) Unique item identifier type.**
 - (4) Issuing agency code (if concatenated unique item identifier is used).**

- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) _____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts.* If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

Section J - List of Attachments

List of Attachments

The following document(s), exhibit(s) and other attachment(s) form a part of this contract:

J-1: N6339426R0005 Stepladder Attachment

J-2: GFI attachment

J-3: Consolidated GFP Attachment

JS-1: Pricing summary 26R0005

JS-2: Past Performance Questionnaire

In addition to the documents listed above, the successful Offeror's accepted/approved Subcontracting Plan and portions of the proposal may be incorporated at contract award. Attachments with the JS prefix are for proposal purposes only and will be removed at contract award.

Exhibit A: DD Form 1423, CDRLs A0001 Through A0008

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	Jun 2023		
252.227-7028	Technical Data or Computer Software Previously Delivered to the Government.	Jun 1995		

FAR Clauses Incorporated by Full Text

52.203-2 Certificate of Independent Price Determination. (Apr 1985)

CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision TBD[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.204-8 Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004) (Mar 2025) Deviation 2025-O0004 (Mar 2025)

Annual Representations and Certifications (MAR 2025)(DEVIATION 2025-O0003 and 2025-O0004)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is \334519.

(2) The small business size standard is 500.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

[X] (i) 52.204-17, Ownership or Control of Offeror.

[X] (ii) 52.204-20, Predecessor of Offeror.

[] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Deviation)

(Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation)

(Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving

rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.215-6 Place of Performance. (Deviation)

(Feb 2026)

PLACE OF PERFORMANCE (FEB 2026) (DEVIATION)

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, ☐ intends, ☐ does not intend [*check applicable block*] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)	Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent
=====	=====
=====	=====

(End of provision)

52.225-18 Place of Manufacture.

(Aug 2018)

PLACE OF MANUFACTURE (AUG 2018)

(a) *Definitions.* As used in this provision-

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

(1) FPSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

- (1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- (2) ☐ Outside the United States.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.
- (d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that
 - (1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2025) Alternate A (Oct 2025)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$200,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:
[Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☒ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.227-7017 Identification and Assertion of Use, Release, or Disclosure Restrictions.

(Jan 2025)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)

(a) *Definitions.* As used in this provision-

"Computer software" is defined in-

(1) The 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in-

(1) The 252.227-7013, Rights in Technical Data-Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7018, Rights in Other Than Commercial Technical Data and Computer Software-Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the

resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
____(LIST) ⁵	____(LIST)	____(LIST)	____(LIST)

¹ For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.

² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).

⁴ Corporation, individual, or other person, as appropriate.

⁵ Enter "none" when all data or software will be submitted without restrictions.

Date	_____
Printed Name and Title	_____

Signature	_____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

INSTRUCTIONS TO OFFERORS

1.0 GENERAL

The term "shall" in this document means an affirmative duty to comply. The Offeror's proposal must comply with the SOW and the offer must include the information requested by this solicitation. Failure to comply with the terms and conditions of the solicitation may result in the Offerors being removed from consideration for award. The Offeror's proposal shall be based on the requirements contained in this solicitation (including those documents, exhibits, and other attachments to the solicitation identified in Section J). All proposals submitted in response to this solicitation become property of the Government and will not be returned. The Government intends to award a FFP MAC IDIQ contract. The MAC ordering period will include a five-year Ordering Period. Upon award of the VLS LSEQ IDIQ, awardees will be required to attend a MAC Post Award Conference. Awardees will then be provided with a fair opportunity to compete for individual delivery orders, and each delivery order will include price or cost as one of the factors in the selection decision. **ONLY ONE CONTRACT WILL BE AWARDED PER OFFEROR FOR THE VLS LSEQ IDIQ PROGRAM. PROPOSALS THAT INCLUDE EXCEPTIONS STATING THAT PROPOSED PRICES ARE SUBJECT TO CHANGE AFTER AWARD WILL BE DEEMED NON-RESPONSIVE TO THE SOLICITATION TERMS AND INELIGIBLE FOR CONTRACT AWARD. FAILURE TO FOLLOW THE INSTRUCTIONS OR CONFORM TO ALL REQUIREMENTS CONTAINED IN THIS SOLICITATION MAY RESULT IN REJECTION OF THE OFFEROR'S PROPOSAL.**

The Government may schedule Pre-Award Site Surveys of the facilities identified in any or all Offerors' proposals following the proposal submission date using the SF 1405 (Production) and/or SF 1406 (QA).

2.0 INSTRUCTIONS FOR SUBMISSION OF OFFERS

2.1 INSTRUCTIONS FOR SUBMISSION:

The solicitation response/proposal will be contained in two separate volumes:

Volume I: Price Proposal (Factor 1)

Volume II: Technical (Non-Price) Proposal (Factors 2-3)

For each volume, the number of copies required and the page limits are shown in the table below. Instructions for electronic files are detailed below in paragraphs 2.2.1 and 2.2.2, respectively. All data submitted shall be marked unclassified.

2.2 PROPOSAL FORMAT AND DELIVERY

Volume	Title	Page Limit	Electronic Copies via PIEE
I	Price Proposal	None	1
II	Technical (Non-Price)	100	1

Offerors must comply with the detailed instructions for the format and content of the proposals. In order to maximize efficiency and minimize the effort involved in the proposal evaluation process, all Offerors shall submit their proposals in accordance with the format presented below.

- The title page of each volume shall contain:
- Cover and title page
- Title of proposal and proposal number as applicable
- Offeror's name, address, and POC
- Date of Submittal
- Solicitation Number - N6339426R0005 LSEQ for MK 41 VLS
- Volume Number and Title (e.g., Volume I -Price Proposal)
- DUNS Number and CAGE Code of the Offeror

These list/information are not included in page limits. Each volume shall contain:

- Title Page
- Table of Contents (Must provide sufficient detail to enable easy location of important elements)

- List of Figures
- List of Tables
- Index Pages
- Glossary of Abbreviations and Acronyms

Duplicated information within a given factor may be included in full once and referenced thereafter, as long as there is a clear reference to the duplicated information. If the duplicated information is for different evaluation factors, then it must be included in full text individually under each factor.

2.2.1 Format:

The Offeror's company name shall appear at the top of each page in the header section. Legibility, clarity, and compliance with the requirements of the solicitation are essential. Failure to provide the requested information may adversely affect the Government's evaluation of the Offerors.

The electronic proposal shall be prepared so that if printed, the proposal meets the following format requirements: no smaller than size 12 Times New Roman font on standard 8-1/2 by 11- inch paper. Text line spacing shall be one line. One-inch margins on each side, including top and bottom are required. Text within tables, diagrams, pictorial charts, or graphic material may use a font no smaller than 8-point.

Unless otherwise specified, tables, charts, and graphs may only include narrative sufficient to describe the diagram, chart or graphic material. Every figure and table shall be numbered.

A date shall be placed on each page of the proposal corresponding to the date of the initial proposal in the footer section. Any pages that may be revised as a result of discussions or correspondence (if required) shall contain revision numbers and dates.

Offerors shall submit a Cross Reference Matrix (CRM) for the Technical Volume, similar to the example below to help ensure that all solicitation requirements are addressed and to facilitate the evaluators' review of the Offeror's proposal. The CRM should be a single integrated matrix and cross-reference the proposal volumes and paragraphs to specific solicitation requirements, as well as other parts of the proposal that contain relevant information. The Offeror's CRM may use the table below a basis for the CRM matrix. The matrix columns should indicate the Section L paragraph, the applicable SOW paragraph, the Section M Evaluation Factor, and any proposal references. The table below may be revised to add columns to indicate the page number on which information may be found, identify where other relevant information in the proposal is located, or provide other comments. The CRM does not count against any of the proposal page limitations.

Each factor and volume shall be written to the greatest extent possible on a stand-alone basis so that its content may be evaluated with a minimum of cross-referencing to other factors and volumes of the proposal. Cross-referencing within a given factor is permitted where its use would conserve space without impairing clarity. In the event an Offeror decides to cross reference information, it is the responsibility of the Offeror to include the information in full and provide clear references to that information in other portions of the factor where the Offeror would like the evaluators to consider any duplicated information. Nevertheless, Offerors are reminded of their burden to present its capability in a manner that is clear for evaluators.

EXAMPLE OF A CROSS REFERENCE MATRIX (CRM)			
Section L Proposal Instruction	SOW	Section M Evaluation Factor	Proposal Reference
Volume II / Technical (Non- Price)	Example: Section C, SOW, Para 3.11, Testing, Inspection and Acceptance	Factor 3, Element 2	Provide reference to Offeror's Proposal Volume II - Technical.
	Note: Address applicable to paragraphs within the SOW		Example: Refers to appropriate page number in Offeror's written proposal

2.2.2 Electronic Files

The documents shall be prepared using Microsoft Word compatible applications; and spreadsheets, worksheets, or workbooks shall be prepared using Microsoft Excel compatible applications.

Graphics, tables, photographs, and other data not compatible with Microsoft Word; or Microsoft PowerPoint may be submitted in Adobe Acrobat 9.0 format. The electronic spreadsheets shall not be compiled or password protected; all cells and formulas shall be visible, editable, and unprotected. Offerors shall not establish links referencing other spreadsheet files not included with the proposal.

All referenced documents suitable for public release for the Solicitation are available on the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module and the System for Award Management (SAM) at <https://SAM.gov/> to include any future amendments to the Solicitation. Potential Offerors are encouraged to subscribe for real-time e-mail notifications when information has been posted to the website for this Solicitation.

If the Solicitation is amended, all terms and conditions that are not amended remain unchanged.

No pricing information shall be included in Volume II. Do not include technical information in volume I that is needed to evaluate the non-price factors.

2.2.3 Proposal Submission:

Proposal submission shall be as follows:

Proposals shall be submitted via PIEE Solicitation Module to michael.l.torres2.civ@us.navy.mil and john.s.carhart.civ@us.navy.mil. Proposals may be withdrawn by written notice received at any time before award.

Although legible, neat, orderly, and comprehensive proposals are required, elaborate brochures or other presentations beyond what is needed to present a complete and effective explanation are not desired. Elaborate artwork, expensive visual or other presentation aids are neither necessary nor desired.

Minimum Proposal Acceptance Period - Offeror's proposals must be valid for 450 Days from the proposal submittal due date specified in the Solicitation. The term "acceptance period," as used in this Solicitation, means the time period available to the Government to award a contract from the date specified in this Solicitation for receipt of proposals.

The proposal shall contain all the pertinent information in sufficient detail to permit evaluation. Information shall be confined to the appropriate volume to facilitate independent evaluation. The proposal should be clear and concise, logically assembled and indexed and cross-indexed to applicable parts of this solicitation as appropriate.

2.3 PROPOSAL CONTENT:

Proposal shall demonstrate an understanding of the requirements and the proposed method of completing the work described in the SOW. To facilitate the evaluation, the proposal should be sufficiently detailed and complete to clearly demonstrate that the prospective Offerors have a thorough understanding of the requirements and the technical and management problems inherent therein. It should also contain sufficient detail to indicate the proposed means for complying with all applicable specifications. Statements that the prospective Offerors understands and can or will comply with all specifications, statements paraphrasing the specifications or parts thereof, and phrases such as "standard procedures will be employed" or "well known techniques will be used", etc., are insufficient. It is the Offeror's responsibility to provide a submission that enables the Government to effectively evaluate the Offeror's submission.

The Offerors have the burden of providing a submission that demonstrates the Offerors have an accurate understanding of the requirements; the Offerors have viable solutions for the requirements; and the Offerors are able to meet the requirements. The proposal should not simply rephrase or restate the Government's requirements but rather provide convincing rationale to address how the Offerors intends to meet these requirements. Offerors shall assume the Government has no prior knowledge of the Offeror's experience or capability and will base the Government's evaluation on the information presented in the Offeror's proposal. The Offerors are reminded the Government reserves the right to award this effort based on the initial proposal, as received, without discussions.

Offerors shall comply with all solicitation requirements, terms, and conditions. If Offerors takes exception to any of these requirements the exception shall be identified to the Government prior to receipt of the Offeror's proposal.

a. The contents described below shall be included in Volume I Price Proposal:

SF 33, "Solicitation, Offer, and Award," with blocks 12 through 18 completed by the Offerors. Block 12 shall be filled in with 450 days to allow for sufficient time to evaluate proposals.

SF33 Section B, "Supplies or Services and Prices," with all prices for all line items completed by the Offerors.

SF33 Section K, "Representations, Certifications, and Other Statements of Offerors," completed by the Offerors.

SF33: Offerors must fill in all areas of the solicitation listed as "Offeror fill-ins" and provide any other information or data required by the solicitation.

b. Volumes I and II shall consist of (non-price) technical proposal that consist of past performance and technical capability.

Disposition of TDP and Technical Drawings

All Offerors, except the winning Offerors, must destroy all copies/media of TDP and Technical Drawing List within 30 days after contract award, whether electronic or hard copy format.

Offerors must provide the Contracting Officer a statement certifying that all TDP data is destroyed when destruction is accomplished. Offerors shall not make additional copies, paper or electronic, of the provided data, nor should Offerors transfer the data by any means to a third party. Offerors shall not download any files from DoD SAFE or the TDP CD to any local area network or integrated digital environment.

2.4 VOLUME I -PRICE PROPOSAL

Volume I - Price Proposal shall include the following information.

FACTOR 1: TOTAL PRICE

OFFERORS SHALL SUBMIT A COMPLETE PRICE PROPOSAL THAT ADDRESSES ALL INFORMATION REQUIRED TO EVALUATE THE PRICING PROPOSED FOR EACH CLIN, THIS INCLUDES THEIR CAPACITY PER YEAR OVER THE FIVE YEAR ORDERING PERIOD. The Offerors shall be aware they are not guaranteed the total quantity per CLIN; quantities will be split between separate delivery orders. The price proposal shall be a separate volume from the technical (non-price) proposal. It is expected that the resulting MAC contract will be awarded based upon a determination that there is adequate price competition. Therefore, Offerors are not required to submit or certify cost and/or pricing data with their proposal.

If after receipt of proposals, the Contracting Officer determines that adequate price competition does not exist in accordance with FAR 15.403-1 or that only one offer is received, the Offerors shall provide certified cost and/or pricing data as requested by the Contracting Officer.

The price and cost summaries provided in Volume I must not conflict with the data submitted in Section B schedules. In the event of a discrepancy, prices found in the filled-out Section B shall be utilized.

Volume I of the proposal shall include pricing spreadsheets for all CLINs, for all items as described in Section B. See Attachment J-S-1 Pricing Spreadsheet. Spreadsheet shall be in Microsoft Excel format with cells containing working formulas that are visible for Government examination of price buildup and methodology. *All pricing shall be proposed in whole dollars.*FAR 52.215-1(f)(8) applies here, and states: "The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable price, the price of one or more contract line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government."

a. In addition, the Government will assess the adequacy and completeness of the Offeror's provided information required for this factor. Offerors that submit inadequate or incomplete information may render the proposal ineligible for award.

For evaluation purposes, the Government will calculate a Total Price by adding the price for all CLINs. Estimated quantities are used solely for evaluation.

2.5 VOLUME II - TECHNICAL (NON-PRICE) PROPOSAL

No price information shall be included in this volume.

Volume II - Technical (Non-Price) Proposal shall be organized as follows with corresponding sections:

Factor 2: Past Performance

Factor 3: Technical Capability

Element 1: Production Assembly in accordance with SOW and TDP

Element 2: Factory Acceptance Testing (FAT) in accordance with TDP

Element 3: Physical Assets and Facilities to be used in Production and Testing

Element 4: GFP

Element 5: Production Capability and Capacity

FACTOR 2: PAST PERFORMANCE

a. Offerors shall provide a minimum of one, maximum of three Past Performance References with their proposal for like or similar efforts the company has performed within the last five years from the date of proposal submission. Offerors shall also submit one Past Performance Reference for each proposed subcontract valued at 10% or more of their total proposed price. The contracts identified should demonstrate in-depth knowledge and successful implementation of contracts of similar scope and complexity to this solicitation. Similar scope and complexity means having performed most of the types of support efforts identified in the SOW and TDP for this solicitation. The identified contracts can be with Federal Government, commercial or other customers.

b. The Past Performance Questionnaire (PPQ), included as Attachment J-S-2 to the solicitation, is provided for the Offerors or its team members to submit to the client for each project the Offerors includes in its proposal for Factor 2. Include with your proposal submission a copy of the PPQ Cover Sheet. In order to expedite the evaluation process, the Offerors may complete the "Contract Information" portion of the PPQ for the convenience of the client POC. The Offerors shall not, however, complete any other section of the PPQ on behalf of the client POC. The PPQ shall be provided to the client POC with instructions to complete and submit it directly to the Contracting Office to the Contract Specialist at michael.l.torres2.civ@us.navy.mil with copy to john.s.carhart.civ@us.navy.mil by the closing date and time specified on the cover page of the solicitation, Block 9. Completed PPQs are to be emailed from the client directly to the Contracting Officer and Contract Specialist.

Completed PPQs are NOT to be submitted via the Offerors. The Government reserves the right to limit or expand the number of references it decides to contact and to contact references other than those provided by the Offerors. The Government reserves the right to consider any PPQs received after the due date and to contact those clients that do not respond to the PPQ.

c. Submission of Contractor Performance Assessment Reporting System (CPARS) evaluations in lieu of PPQs is acceptable. Offerors who have an effort, which is covered by one or more CPARS evaluations, need not submit a PPQ for that same effort. The narrative submitted with Volume II, Factor 2 should clearly identify the contract number/task order number for any effort for which the Offerors are relying upon a CPARS evaluation rather than submitting a PPQ.

d. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside the Government. This information may include, but is not limited to, past performance information retrieved through CPARS, the Federal Awardee Performance and Integrity Information System (FAPIIS) database, points of contact identified by the Offerors in its proposal, personnel knowledge, and any other known sources not provided by the Offerors. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offerors.

Previous Contracting Effort Narratives

Offerors shall also provide a Previous Contracting Effort Narrative detailing the following information:

- a. Description of how the scope for this past contract/task order relates to this effort in scope and complexity.
- b. Description of the significant achievements, challenges or obstacles that were encountered during contract performance and the measures taken to overcome challenges and obstacles.
- c. If the Offerors cite as a past performance reference a contract that was not awarded to the Offerors as a Prime Contractor the proposal shall demonstrate why the past effort is none the less relevant

FACTOR 3: TECHNICAL CAPABILITY

Element 1: Production Assembly in accordance with SOW and TDP

Volume II shall include the Offeror's detailed plan for accomplishing the technical tasks specified in the SOW and meeting the following minimum requirements described below:

- a. Offerors shall provide sufficient details for evaluation of its proposed Configuration Management (CM) plan and how it complies in accordance with the SOW paragraph 3.10 (Section C). Offerors shall demonstrate through these details an understanding of the CM requirements for this acquisition and describe how it will implement a CM Program. Offerors shall provide examples, minimum one but no more than two, of how it has successfully initiated CM on a previous program of similar size and complexity, as compared to the TDP of this solicitation.
- b. Offerors shall provide its process on managing engineering changes or deviations to the TDP that are either requested by the Contractor, or changes provided by the Government in accordance with the SOW paragraph 3.10.4. Offerors shall provide examples, minimum one but no more than two, of instances it has received updated production requirements. Examples should describe how the Offeror's team successfully dealt with updating production line(s) and processes, interfaced with vendors, met required delivery dates, and ensured quality was maintained.
- c. Offerors shall provide sufficient details for evaluation of its proposed QA Plan and address how it intends to ensure the manufacturing quality of its subcontractors and other vendors in accordance with the SOW paragraph 3.21. Offerors shall ensure that its approach adheres to the requirements of the SOW. Offerors shall provide sufficient details for evaluation of the proposed FACAR system in accordance with the SOW paragraph 3.10.5.

Element 2: FAT in accordance with TDP

- a. Offerors shall explicitly describe its approach in conducting FAT in accordance with the associated Government Furnished Information (GFI) test plans and procedures (Attachment J-1, TDP).
- b. Offerors shall describe how FAT will be implemented and conducted in its facility, identify any testing requirements that cannot be performed in the present facility, and provide a contingency plan for any such requirements.

Element 3: Physical Assets and Facilities to be used in Production and Testing

- a. Offerors shall provide sufficient details for evaluation of the proposed production, assembly, and test facilities (in terms of equipment, personnel, available space) and capital assets in sufficient description as to demonstrate adequate infrastructure, capability, and capacity for the production and test of the contract deliverables. The proposal shall also specifically discuss availability of facilities and assets during the contract period of performance.
- b. Offerors shall describe availability of necessary production, assembly and test facilities capabilities including access to physical plant facilities, required production and test equipment, special test ranges or facilities and skilled production, test and engineering support personnel.

Element 4: GFP

GFP associated with this effort has been identified in Attachment - J-3. Offerors shall describe its plan for managing this GFP in accordance with DFARS 252.245-7005 Management and Reporting of Government Property.

Element 5: Production Capability and Capacity

In Volume II, offerors must specify their minimum and maximum sustainable production capacity each year over the five-year ordering period. A detailed explanation is required to justify the proposed capacity figures. The offer must provide specific, comprehensive processes demonstrating a

clear understanding and capability to deliver in accordance with the delivery of the minimum and maximum quantities referenced in Section B Note A of the SOW. Offerors shall submit a certification that the offerors can support stated capacity if awarded an IDIQ contract.

PRE-AWARD SITE SURVEYS

The Government may schedule Pre-Award Site Surveys of the Offeror's primary production facility, as well as any subcontractor facilities identified in the proposal, to assess the capability, capacity, and readiness of each entity to perform the requirements of the contract. These site visits may occur during the thirty (30) business days immediately following the proposal submission deadline. The purpose of the surveys is to verify the information provided in the proposal, evaluate the adequacy of production resources, QA systems, personnel qualifications, and to ensure compliance with applicable standards and requirements. Offerors are expected to facilitate access to their own and their subcontractors' facilities, equipment, and key personnel to support this evaluation process.

REQUEST FOR DRAWINGS.

This is a build-to-print requirement in accordance with the Government furnished TDP. These drawings are restricted and can only be made available to DoD Contractors under the Joint Certification Program, upon request to the Contracting Office. Drawings are made available via CD mailed out via FedEx or DoD Safe.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024		
52.214-34	Submission of Offers in the English Language.	Apr 1991		
52.214-35	Submission of Offers in U.S. Currency.	Apr 1991		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation)	Feb 2026		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.216-27	Single or Multiple Awards.	Oct 1995		
52.233-2	Service of Protest. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		
252.225-7003	Report of Intended Performance Outside the United States	Oct 2025		
252.232-7016	Notice of Progress Payments or Performance-Based Payments.	Apr 2020		

FAR Clauses Incorporated by Full Text

52.207-4 **Economic Purchase Quantity-Supplies.** **(Aug 1987)**

ECONOMIC PURCHASE QUANTITY-SUPPLIES (AUG 1987)

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

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(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

Offeror Recommendations

Item	Quantity	Price Quotation	Total
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Government's requirements indicate that different quantities should be acquired.

(End of provision)

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use (Apr 2008)

Any contract awarded as a result of this solicitation will be [X] DX rated order; [] DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of provision)

52.216-1 Type of Contract. (Deviation) (Feb 2026)

Type of Contract (Feb 2026) (Deviation)

The Government contemplates award of a Firm-Fixed Price Indefinite Delivery Indefinite Quantity contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

- (i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
- (ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable TBD.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7010 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate I) (May 2024) Alternate I (Aug 2024)

Alternate I. As prescribed in 215.408(5)(i) and (5)(i)(B), use the following provision, which includes different paragraphs (c)(1) and (d)(3) than the basic clause.

**REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA-
ALTERNATE I (AUG 2024)**

(a) *Definitions.* As used in this provision-

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data.*

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception.* For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include-

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial-

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including-

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall-

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog-

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall submit certified cost or pricing data and supporting attachments in the following format: *[Insert description of the data and format that are required, and include access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.408, Table 15-2, Note 2. The Contracting Officer shall insert the description at the time of issuing the solicitation or specify that the format regularly maintained by the offeror or prospective subcontractor in its business operations will be acceptable. The Contracting Officer may amend the description as the result of negotiations.]*

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(ii).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror *[Offeror insert company name]* certifies that the customer was *[Offeror insert one or more of the following as applicable: a government customer (e.g., Federal, state, local, or foreign government); a commercial customer purchasing the same or similar product for governmental purposes; or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose]."*

(4) The Offeror shall provide information described as follows: *[Insert description of the data and the format that are required, including access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e)].*

(5) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(6) *Subcontract price evaluation.*

(i) Offerors shall obtain from subcontractors the information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary-

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts*. The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of-

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-204-H003 **NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019)** **(Apr 2019)**

(a) NAVSEA may use a contractor to manage official contract files here in after referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, here in after referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

(1) The support contractor not disclose any information;

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

(End of Provision)

NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT

L-209-H009 (S) OF INTEREST (NAVSEA) (APR 2022)

(Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to NSWC PHD, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Provision)

L-211-W003 TECHNICAL PROPOSAL – SPECIFIC REQUIREMENTS – SUPERSEDING PART NUMBERS (NAVSEA) (OCT 2018)

(Oct 2018)

If any part number shown is obsolete, has been or is being changed, or is considered by the manufacturer to be incorrect or unavailable for any reason, then it is requested the offeror so indicate in its proposal/quotation and furnish, for the superseding part number, each of the following:

- (a) installation drawing;

- (b) assembly drawing;
- (c) manufacturer's test report;
- (d) complete set of performance data; and
- (e) explanatory information setting forth in detail differences between the item specified and the one being offered.

(End of Provision)

L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (NAVSEA) (OCT 2018) (Oct 2018)

(a) The Offeror shall complete the "Price Group" (Block 17) and "Estimated Total Price" (Block 18) of each data item on the Contract Data Requirements List (CDRL) of this solicitation using the following instructions:

(1) Block 17. Use the specified price group defined below in developing estimated prices for each data item on the DD Form 1423:

(a) Group I. Definition - Data which is not otherwise essential to the offeror's performance of the primary contracted effort (production, development, testing, and administration) but which is required by DD Form 1423.

(i) Estimated Price - Costs to be included under Group I are those applicable to preparing and assembling the data item in conformance with Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(b) Group II. Definition - Data which is essential to the performance of the primary contracted effort but the offeror is required to perform additional work to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group II are those incurred over and above the cost of the essential data item without conforming to Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(c) Group III. Definition - Data which the offeror must develop for his internal use in performance of the primary contracted effort and does not require any substantial change to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group III are the administrative and other expenses related to reproducing and delivering such data items to the Government.

(d) Group IV. Definition - Data which is developed by the contractor as part of his normal operating procedures and his effort in supplying these data to the Government is minimal.

(i) Estimated Price - Group IV items should normally be shown on the DD Form 1423 at no cost.

(2) Block 18. For each data item, enter an amount equal to that portion of the total price which is estimated to be attributable to the production or development for the Government of that item of data. The estimated data prices shall be developed only from those costs which will be incurred as a direct result of the requirement to supply the data, over and above those costs which would otherwise be incurred in performance of the contract if no data were required. The entry "N/C" for "no charge" will be acceptable. The estimated price shall not include any amount for rights in data. The Government's rights to use the data shall be governed by the pertinent provisions of the contract.

(End of Provision)

L-215-H007 SUBMISSION OF QUESTIONS BY OFFERORS—ALTERNATE I (NAVSEA) (NOV 2021) (Nov 2021)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror's responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW or PWS (as applicable) and other solicitation documents attached

hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions is two weeks prior to the closing date of the solicitation. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via email to the point of contact listed for this solicitation. Responses will be posted to the SAM web page at <https://www.SAM.gov>.

(End of Provision)

L-219-H001 SUBMISSION OF SMALL BUSINESS SUBCONTRACTING PLAN (NAVSEA) (JAN 2021) (Jan 2021)

Offeror shall submit as part of its proposal a subcontracting plan in accordance with the clause entitled "Small Business Subcontracting Plan" (FAR 52.219-9). The plan shall include a five percent (5%) goal for small disadvantaged business concerns or a detailed explanation as to why the goal cannot be included in the plan.

(End of Provision)

L-245-H002 INSTRUCTIONS REGARDING GOVERNMENT PROPERTY (NAVSEA) (JUL 2024) (Jul 2024)

All offerors shall submit the following information in their proposal:

(1) A list or description of all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);

(2) The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;

(3) The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges; and

(4) A description of the offeror's property management system, plan, and any customary commercial practices, voluntary consensus standards, or industry-leading practices and standards to be used by the offeror in managing Government property.

(End of Provision)

L-245-H001 AVAILABILITY OF GOVERNMENT PROPERTY (NAVSEA) (JUL 2024) (Jul 2024)

Government property is offered for use under this solicitation. The contractor is responsible for all costs related to making the property available for use, including (but not limited to) payment of all transportation, installation, and rehabilitation costs.

(End of Text)

Section M - Evaluation Factors for Award

EVALUATION FACTORS FOR AWARD

1.0 GENERAL INFORMATION

The Government intends to award one or more contracts resulting from this solicitation to the responsible Offeror whose proposal offers the best value to the government.

Offerors are required to price all CLINs not categorized as Not Separately Priced (NSP).

The Government will evaluate each Offeror's understanding of the Government's requirements and ability to perform the work. It is the Offeror's responsibility to provide information and evidence, which clearly demonstrates its ability to satisfactorily perform the contract requirements.

Each factor will be evaluated on a stand-alone basis; however, at the Government's discretion information contained in one factor of the proposal may be used to assist the Government in evaluating other factors of the proposal.

Contractors must be properly registered in the System for Award Management (SAM). Offerors may obtain information on SAM registration and annual confirmation requirements by calling 1- 866-606-8220, or via the Internet at <https://www.sam.gov>. Failure to register in SAM makes an Offeror ineligible for award of DoD contracts.

If it is determined that an offer is not in compliance with the page limitation of the volume of the proposal, pages above the specified page limit within each volume will be removed and will not be evaluated. Proposals that are not submitted in compliance to the electronic- copy requirements specified in Section L may be rejected.

FAR Part 9.103(a) states that purchases shall be made from, and contracts shall be awarded to, responsible contractors only. FAR Part 9.103(b) stipulates that no purchase or award shall be made unless the contracting officer makes an affirmative determination of responsibility. In making a responsibility determination, the standards at FAR 9.104-1 will be considered. The Contracting Officer reserves the right to request adequate evidence of responsibility on the part of the Offeror or any proposed subcontractor. Communications with Offerors regarding responsibility issues may take place at any time during the proposal evaluation process.

2.0 EVALUATION FACTORS

The Government will evaluate the Offeror's proposal in accordance with the following:

Factor 1: Total Price

Factor 2: Past Performance

Factor 3: Technical Capability

Element 1: Production Assembly in accordance with SOW and TDP

Element 2: FAT in accordance with TDP

Element 3: Physical Assets and Facilities to be used in Production and Testing

Element 4: GFP

Element 5: Production Capability and Capacity

3.0 EVALUATION METHODOLOGY

FACTOR 1 - TOTAL PRICE (VOLUME I)

The Price Factor will NOT be characterized as "Acceptable" or "Unacceptable". If adequate competition is received, the Government will only perform a price analysis to the extent that it is required, in accordance with FAR 15.404- 1(b)(1). For purposes of making an award decision, the Government will arrive at a Total Price by adding the price for all CLINs. Priced offers will be evaluated for reasonableness and appropriateness of proposed amounts. The Government will evaluate all FPP CLINs for price reasonableness only. Price or Cost Realism will NOT be conducted.

IDIQ Price or Ceiling is the maximum dollar amount that may be obligated under the contract during the ordering period and shall not be exceeded.

The pricing for CLINs with step ladder pricing assume the random quantity selected will be the maximum quantity on the highest quantity rung of the ladder for example for CLIN-0006 use the quantity of 5 to calculate the extended price for the CLIN.

The pricing for stepladder quantity CLINs will be the product of a randomly selected evaluated quantity for each CLIN and the unit price associated with the randomly selected quantity for that CLIN.

Example:

Evaluated Quantity = 5		
<u>Stepladder Quantity</u>	<u>Unit Price</u>	<u>Total</u>
1-4	\$7,528	\$0
5-9	\$5,894	\$29,472
10-14	\$5,305	\$0
15-20	\$4,988	\$0
	Total:	\$29,472

Price breaks given for each stepladder within a CLIN are to apply to all units within that and lower quantity stepladder i.e. The total price of the example 5 units will be calculated as \$29,472 (5 units x \$5,894 per unit), NOT \$34,373 (3 units x \$7,528 per unit + 2 units x \$5,894). The evaluated quantity in no way restricts the Government as to the number of units it may order under each line item. It is used solely for evaluation purposes. The Government reserves the right to order any quantity within a stepladder subject to 1) the availability of funding and 2) in accordance with Section B, Note A.

The contract will be an IDIQ contract, with fixed priced CLINs for supplies. The Government may reject an offer as materially unbalanced if prices are unreasonable in comparison to each other.

FACTOR 2 - PAST PERFORMANCE (VOLUME II)

The Past Performance Evaluation is an assessment of the Offeror's probability of successfully performing the contract. This assessment is based on the Offeror's record of relevant and recent past performance that pertain to the product and/or services outlined in the solicitation. The Offeror's proposal will be evaluated and rated on an adjectival basis using the Past Performance Relevancy Rating and Performance Confidence Assessments Rating.

Past performance will be initially evaluated to determine whether the Offeror's past performance is recent, and relevant. For the purposes of this solicitation, recency is defined as projects performed within five years prior to the closing date of the solicitation. Common aspects of the relevancy include, but are not limited to, the following:

similarity of the product/service/support, complexity, dollar value, contract type, and extent of subcontracting/teaming.

Second, the past performance evaluation will determine how well the Offeror performed on the prior contracts. If past performance is not available or so sparse that no meaningful past performance rating can be reasonable assigned, the Offeror may not be evaluated favorable or unfavorable on past performance (see FAR 15.305 (a) (2) (iv)).

In evaluating the Past Performance, the Government evaluation will include:

- **Quality of Product or Service.** The degree to which the products or services provided met the requirements of the contract and the degree to which they were similar to this solicitation.
- **Delivery/Completion Schedule.** The extent to which the offeror satisfied customer requirement for contract completion in accordance with agreed upon schedule.
- **Cost Control.** The extent to which the offeror provided contract services at or below their initially proposed prices while maintaining customer desired level of quality and delivery.
- **Any other information** pertaining to the offeror's past performance, including customer questionnaires.

FACTOR 3 - TECHNICAL CAPABILITY (VOLUME II)

Factor 3 will be evaluated on an Adjectival basis and will be assigned a rating specified below. This technical evaluation focuses on strengths, weaknesses, significant weaknesses, deficiencies, and risks of the Offeror's proposal, resulting in the assignment of an adjectival rating at the factor level. The following elements will be evaluated for Factor 3:

Element 1: Production Assembly in Accordance With SOW and TDP

- a. The Offeror's proposed Configuration Management (CM) process shall be evaluated to assess the comprehensiveness of process documentation and the effectiveness of CM application. The evaluation will examine the Offeror's understanding of the specific CM requirements outlined in this acquisition and the extent to which their proposed CM process aligns with those requirements. Consideration will also be given to the Offeror's demonstrated experience in implementing CM practices and their ability to effectively manage configuration baselines, changes, and controls. The evaluation will further analyze whether the proposed CM approach includes robust procedures for ensuring traceability, accountability, and consistency throughout the lifecycle of the project, as well as the Offeror's capacity to adapt their CM process to meet the unique demands of this solicitation.
- b. The Offeror's proposed processes and experience in managing engineering changes or deviations to the TDP and integrating those changes into the production line will be thoroughly evaluated to assess their demonstrated capability to understand, address, and implement engineering modifications effectively. This evaluation will include a review of the Offeror's ability to identify, document, and control engineering changes while ensuring that updated production requirements are met without compromising quality or schedule. Furthermore, the Offeror's approach to updating and verifying production line changes and processes will be analyzed to determine the robustness of their methods for ensuring accuracy, compliance, and traceability. The evaluation will also consider how the Offeror mitigates risks associated with engineering changes, their strategy for minimizing disruptions to production, and their ability to communicate and coordinate changes across all relevant stakeholders effectively.
- c. The Offeror's QA process will be evaluated to confirm that it meets the certification standards of ANSI/ASQC Q9001, ISO 9001, or an equivalent recognized quality management system. The evaluation will assess the comprehensiveness of the Offeror's process documentation, the degree of adherence to established QA practices, and the alignment with the requirements specified in SOW paragraph 3.21. Additionally, the Offeror's FACAR system will be evaluated to determine its capability to effectively support the needs outlined in SOW paragraph 3.10.5. This assessment will focus on the system's functionality in tracking, documenting, and resolving quality issues, as well as its ability to integrate with overall QA processes to ensure continuous improvement and compliance. The evaluation will also consider the Offeror's experience in utilizing their QA and FACAR systems to mitigate risks, maintain high production standards, and provide verifiable quality outcomes that align with the solicitation's objectives.
- d. The offeror's demonstrated capability to manufacture Circuit Card Assemblies (CCAs) in accordance with applicable industry standards, including IPC-A-610 for acceptability of electronic assemblies, IPC-6012 for qualification and performance of rigid printed boards, and J-STD-001 for requirements on soldered electrical and electronic assemblies. The Offeror must provide evidence of adherence to these standards through documented quality control processes, certification of manufacturing personnel, inspection procedures, and historical production records. Emphasis will be placed on the Offeror's ability to consistently deliver CCAs that meet form, fit, function, and reliability requirements as defined by the TDP and contractual specifications."
- e. The offeror's proposed management approach will be evaluated to determine its effectiveness in ensuring the successful execution of all tasks outlined in the SOW while adhering to all program requirements. This evaluation will include an assessment of the Offeror's corporate structure and project organization to gauge their ability to provide clear lines of authority, accountability, and decision-making. The Offeror's quality policy will also be reviewed to ensure it supports the delivery of high-quality outcomes in alignment with the program's objectives.

Additionally, the Offeror's approach to risk management will be analyzed, focusing on their ability to identify, assess, and mitigate risks that could impact cost, schedule, or performance. Subcontractor management practices will also be examined to determine the Offeror's capability to oversee and integrate subcontractor contributions effectively while ensuring compliance with program standards.

The Offeror's strategies for communication with the Government and other organizations will be a critical factor, with an emphasis on their ability to foster collaboration, ensure transparency, and resolve issues promptly. Overall, the proposed management approach will be assessed for its comprehensiveness, adaptability, and capacity to deliver on the program's objectives within the required timelines and constraints.

Element 2: FAT in accordance with TDP

The evaluation of the Offeror will encompass the sufficiency and readiness of the proposed personnel, facilities, physical test space, test fixtures, test software, and test equipment. This assessment will focus on the Offeror's demonstrated capability to comprehend and address the specific test requirements and their proficiency in executing FAT effectively. The evaluation will also consider the extent to which the Offeror's resources are aligned with project demands, including the availability and qualification of personnel, the adequacy of facilities to accommodate testing operations, the precision and reliability of test equipment, and the functionality of test software in meeting FAT objectives. Furthermore, the Offeror's ability to ensure timely execution, maintain quality standards, and adapt to potential challenges during the FAT process will be integral to the overall assessment.

Element 3: Physical Assets and Facilities to be used in Production and Factory Acceptance Testing

The Offeror shall provide a clear and detailed description of its infrastructure for manufacturing and testing, highlighting its capability and capacity to produce high-quality products that meet the Government's requirements and delivery schedule. The Government will evaluate the Offeror's proposed approach and infrastructure to determine whether it demonstrates a sound and acceptable plan for meeting the solicitation requirements. This evaluation will include an assessment of the availability and suitability of physical facilities, equipment, and resources necessary to support production readiness reviews and ensure successful manufacturing and testing operations. The Offeror's ability to scale operations, maintain quality standards, and adhere to scheduled timelines will also be key factors in determining the adequacy of the proposed infrastructure.

The Offeror shall possess the necessary manufacturing infrastructure and equipment to produce high-quality CCAs in compliance with applicable industry standards. At a minimum, the Offeror is expected to have a complete Surface Mount Technology (SMT) assembly line, including automated pick-and-place machines, stencil printers for solder paste application, and reflow ovens for controlled soldering processes. For through-hole component assembly, the Offeror shall have wave soldering or selective soldering systems, as well as ESD-safe manual soldering stations. QA and

inspection capabilities must include Automated Optical Inspection (AOI), X-ray inspection for hidden joints such as Ball Grid Array (BGAs), In-Circuit Test (ICT) systems, and functional test fixtures as required by the TDP.

The Offeror shall provide a comprehensive description of the proposed staffing plan, clearly demonstrating the ability to supply sufficient engineering, production, and testing personnel to fulfill all contract requirements. The Government will evaluate whether the Offeror's proposed resources indicate an adequately staffed and capable production support engineering team that meets the solicitation requirements.

The Offeror shall also detail and demonstrate the availability of production planning and execution resources, including hardware, software, manpower, and infrastructure, across product lines to support and expand production capacity. This is critical to ensuring early or on-time deliveries. Additionally, the Offeror must demonstrate proficiency in operating GFP ATE and maintaining the required manpower levels to effectively execute contract tasks.

The Offeror's plan must include the ability to respond promptly to Government requests for updates on production status, including daily communications and reporting, to ensure transparency and alignment with contract goals.

Element 4: GFP

The Government will evaluate the offeror's Government property management plan to ensure it addresses the requirements of DFARS 252.245-7005, and other specific GFP related requirements within this solicitation contained in Section C Paragraph 3.3.1.

The Government will assign an adjectival rating for Factor 3 in accordance with the adjectival rating table.

Element 5: Production Capability and Capacity

The Government will evaluate the sustainability of the Offeror's proposed minimum and maximum annual production capacity over the five-year ordering period. Offerors must demonstrate a clear understanding of, and capability to meet, the delivery schedule outlined in Section 2.3 of the SOW. A certification confirming the Offeror's ability to support the stated capacity upon award of an IDIQ contract is also required. The Government will assign an overall performance confidence assessment rating.

3.1 RATING DEFINITION

The government will use the following adjectival ratings/definitions for evaluation Factor 2: Past Performance:

Past Performance Relevancy Rating

Adjectival Ratings	Description
Very Relevant	Present/Past Performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires
Relevant	Present/Past Performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/Past Performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires
Not Relevant	Present/Past Performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires

Past Performance Confidence Ratings

Adjectival Ratings	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.

Neutral Confidence	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort.

The Government will use the following adjectival ratings/definitions for evaluation Factor 3: Technical Capacity:

Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Definitions for Factor 3 Technical Capability

Strength- An aspect of an Offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

Weakness- A flaw in the proposal that increases the risk of unsuccessful contract performance (pre FAR 15.001).

Significant Weakness- A flaw that appreciably increases the risk of unsuccessful contract performance (pre FAR 15.001).

Deficiency- A material failure of a proposal to meet a Government requirements or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level (pre FAR 15.001).

4.0 BASIS FOR AWARD

The Government intends to award one or more contracts to the responsive and responsible Offerors whose proposal provides the Best Value to the Government based on consideration of the factors in Section M of this Solicitation.

The best value proposal will be selected using a tradeoff process, as defined in FAR 15.101-1, which permits tradeoffs among price and non-price factors. Accordingly, the Government may accept other than the lowest cost proposal(s) where the perceived benefits of the higher cost proposal(s) merit the additional cost. Conversely, the Government may select a lower-cost, lower rated proposal(s) if the Government determines that the premium associated with the higher-rated proposal is not justified. The Government may cease evaluation of any proposals that it determines are nonresponsive, unacceptable, or otherwise ineligible for award. In making its best value determination, the Government will consider the relative importance of the factors.

Additional Regulation or Supplemental Clauses Incorporated by Full Text

OFFERS SUBMITTED ON AN F.O.B. BASIS OTHER THAN THAT SPECIFIED IN SECTION F SHALL BE REJECTED AS UNACCEPTABLE.

(End of Provision)